

The Rajasthan Urban Improvement Act, 1959

Source: <https://indiankanoon.org/doc/79332481/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[380](#)

[\]](#)

[State of Rajasthan - Act](#)

[The Rajasthan Urban Improvement Act, 1959](#)

[RAJASTHAN](#)

[India](#)

[The Rajasthan Urban Improvement Act, 1959](#)

[Act 35 of 1959](#)

[Published on 19 October 1991](#)

[Commenced on 19 October 1991](#)

[\[This is the version of this document from 19 October 1991.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Rajasthan Urban Improvement Act, 1959](#)

[Act](#)

[No. 35 of 1959](#)

[\[Received the assent of the President on the 24th day of July, 1959.\]](#)

[An Act for the improvement of urban areas in Rajasthan.](#)

[Whereas it is expedient to make provision for the improvement and expansion of urban areas in the State of Rajasthan.](#)

[Be it enacted by the Rajasthan State Legislature in the Tenth Year of the Re-public of India as follows:-](#)

[Chapter I](#)

[Preliminary](#)

[1.](#)

[Short title and extent.](#)

(1)

This Act may be called the Rajasthan Urban Improvement Act, 1959.

(2)

It extends to the whole of the State of Rajasthan.

2.

Interpretation.

(1)

In this Act, unless there is something repugnant in the subject or context,-

(i)

"amenity" includes read, water supply, street-lighting, drainage, sewerage, public works and such other convenience as the State Government may, by notification in the Official Gazette, specify to be normally an amenity for all or any of the purposes of this Act;

(ii)

"building" includes any structure or erection or part of a structure or erection which is intended to be used for residential, industrial, commercial or other purpose, whether in actual use or not;

(iii)

"building operations" includes rebuilding operations, structural alterations of or additions to buildings and other operations undertaken in connection with the construction of buildings;

(iv)

"Chairman" means the Chairman of a Trust;

[(iv-a) "Collector" means the Collector of a district and includes an Additional Collector appointed to a district as well as any officer specially appointed by the State Government to perform the functions and exercise the powers of a Collector under this Act;]

[Added by Rajasthan Act

10 of 1973

. dated 28-3-1973, w.e.f. 2-12-1972.]

(v)

"Engineering operations" includes the formation or laying out of means of access to a road or the laying out of means of water-supply, electricity or drainage;

(vi)

"improvement" with its grammatical variations means the carrying out of building, engineering, mining or other operations in, on, over or under land or the making of any material change in any building or land [or making provision for any amenity in, on, over or under any building or land]

[Inserted by Rajasthan Act

10 of 1973

. dated 28-3-1973. w.e.f. 2-12-1972.]

and includes re-improvement;

(vii)

"master plan" means the master plan prepared and approved for any urban area in accordance with the provisions of Chapter II;

(viii)

"Trustee" means a member of a Trust, including its Chairman, appointed or elected, under and in accordance with the provisions of section 9;

(ix)

the expression 'land' and the expression 'person interested' have the meanings respectively assigned them in section 3 of the Rajasthan Land Acquisition Act, 1953 (Rajasthan Act 24 of 1953);

(x)

"urban area" means the urban area notified under section 3 or, as the case may be, under section 8;

(xi)

"zone" means any one of the divisions in which an urban area may be divided for the purposes of improvement under this Act;

(xii)

all references to anything done, required, authorised, permitted, forbidden or punishable, or to any power vested under this Act, shall include anything done, required, authorised, permitted, forbidden or punishable or any power vested-

(a)

by any provision of this Act; or

(b)

by any rule or scheme made under the provision of this Act; or

(c)

under any provision of the Municipal law for the time being in force which the Trust has by virtue of this Act power to enforce;

(xiii)

["former trust" means anybody, by whatsoever name designated, whether statutory or non-statutory and whether corporate or otherwise, functioning in any area within the State immediately before the establishment of an Improvement Trust under this Act for such area for the improvement or development thereof.]

[Added by Rajasthan Act 6 of 1962, dated 21-4-1962, w.e.f. 30-12-1961.]

(2)

All words and expressions not defined in this Act have, wherever used therein, the same meanings as are assigned to them by the Municipal law for the time being in force:

Provided that the expression "Municipal Board" wherever used in this Act shall be deemed to include a Municipal Corporation, a Municipal Council or any other Municipal authority.

Chapter II

Master Plans

3.

Power of State Government to order preparation of Master plan.

- [(1) The State Government may, by order, direct that in respect of and for any urban area in the State specified in the order, a civil survey shall be carried out and a master plan shall be prepared, by such officer or authority as the State Government may appoint for the purpose]

[Substituted by Rajasthan Act 3 of 1963, dated 29-3-1963.]

,

(2)

For the purpose of advising the officer or authority appointed under sub-section (1) on the preparation of the master plan, the State Government may constitute an advisory council consisting of a Chairman and such number of other members as the State Government may deem fit.

4.

Contents of Master plan.

- The master plan shall-

(a)

define the various zones into which the urban area for which the plan has been prepared may be divided for the purposes of its improvement and indicate the manner in which the land in each zone is proposed to be used, and

(b)

serve as basic pattern of frame work within which the improvement schemes of the various zones may be prepared.

5.

Procedure to be followed.

(1)

Before preparing any master plan officially the officer or authority appointed to prepare it shall publish a draft of the master plan by making a copy thereof available for inspection and publishing a notice in such form and manner as may be prescribed by rules made in this behalf inviting objections and suggestions from every person with respect to the draft master plan before such date as may be specified in the notice.

(2)

Such officer or authority shall also give reasonable opportunity to every local authority within whose local limits any land touched by the master plan is situated to make any representations with respect to the master plan.

(3)

After considering all objections, suggestions and representations that may have been received, such officer or authority shall finally prepare the master plan.

(4)

Provisions may be made by rules made in this behalf with respect to the form and contents of a master plan and with respect to the procedure to be followed and any other matter in connection with the preparation of the master plan.

6.

Submission of Master plan to Government.

(1)

Every master plan shall, as soon as may be after its preparation be submitted to the State Government for approval in the prescribed manner.

(2)

The State Government may direct the officer or authority appointed for the preparation of a master plan to furnish such information as it may require for the purpose of approving any master plan submitted to it under this section.

(3)

The State Government may either approve the master plan without modifications or with such modifications as it may consider necessary or reject it with directions for the preparation of a fresh master plan.

7.

Date of operation of Master plan.

- Immediately after a master plan has been approved by the State Government, it shall publish in the prescribed manner a notice stating that the master plan has been approved and naming a place where a copy of the same may be inspected during office hours: and upon the date of the first publication of the aforesaid notice the master plan shall come into operation.

Chapter III

Constitution of Trusts

8.

Establishment and incorporation of Trusts.

(1)

The State Government may, by notification in the official Gazette, establish, for the purpose of carrying out improvement of any urban area in the State, whether a master plan in respect thereof has or has not been prepared, a Board of Trustees to be called the Improvement Trust of the place where its principal office is situated, hereinafter called 'the Trust'.

(2)

Every such Trust shall be a body corporate by the aforesaid name having perpetual succession and a common seal with power to acquire, hold and dispose of property both movable and immovable and to contract and shall by the said name sue and be sued.

9.

Constitution of Trust.

(1)

The Trust shall consist of-

(a)

a Chairman,

(b)

two members of the Municipal Board, if any, having authority in the urban area, [x x x]

[Omitted by Rajasthan Act 3 of 1963. dated 29-3-1963.]

(bb)

[x x x]

[Deleted by Rajasthan Act 7 of 1972. dated 19-4-1972.]

(c)

[such number of other persons, as may be determined by the State Government for each Trust, of whom one shall be a person belonging to scheduled tribe or scheduled caste, if no person of such caste or tribe is represented in the Trust by

virtue of clause (a) or clause (b).]

[Substituted by Rajasthan Act 8 of 1975, dated 15-3-1975.]

[x x x]

[Deleted by Rajasthan Act 7 of 1972, dated 19-4-1972.]

(2)

The Chairman and the persons referred to in clause (c) of sub-section (1) [x x x]

[Omitted by Rajasthan Act 7 of 1972. dated 19-4-1972.]

shall be appointed by the State Government by notification.

(3)

The members of the Municipal Board referred in clause (b) of sub-section (1) shall be elected by the said Board.

(4)

If the said Board does not, by such date as may be fixed by the State Government, elect two of its members to be Trustees, the State Government shall appoint two members of the said Board to be Trustees and every person so appointed shall be deemed to be a Trustee as if he had been duly elected by the Municipal Board.

(5)

If the said Board shall have been superseded or dissolved in accordance with the provisions of the Municipal law for the time being in force, it shall be represented on the Trust by persons appointed or elected, as the case may be, by the officer or authority appointed under the said law to discharge the functions and exercise the powers of the Board during the period of its supersession or dissolution.

(6)

Of the person referred to in clause (c) of sub-section (1) at least one shall be a person in the service of the State Government.

(7)

The names of all persons appointed or elected to the Trust shall be notified by the State Government in the official Gazette.

10.

Resignation of Trustee.

- Any Trustee may at any time resign his office, provided that his resignation shall not take effect until accepted by the State Government.

11.

Term of office of chairman.

- The term of office of the Chairman shall ordinarily be three years.

12.

Term of office of other Trustees.

- Subject to the foregoing provisions, the term of office of every Trustee elected under clause (b) of sub-section (1) of section 9 shall be three years or until he ceases to be a member of the Municipal Board, whichever period is less, and of every Trustee appointed under clause (c) of the said sub-section shall be three years, or in the case of such Trustee being in the service of the State Government, until he ceases to hold the office by virtue of which he was appointed Trustee, whichever period is less.

13.

Commencement of term of office of first Trustees.

(1)

The term of office of the first Trustees shall commence on such date as shall be notified in this behalf by the State Government.

(2)

A person ceasing to be a Trustee by reason of the expiry of his term of office shall, if otherwise qualified, be eligible for re-appointment or re-election.

14.

Remuneration of Trustees.

(1)

The Chairman [may be paid from]

[Substituted by Rajasthan Act 3 of 1963. dated 29-3-1963.]

out of the trust fund such salary or allowances as may from time to time be proposed by the Trust and approved by the State Government.

(2)

Other Trustees may be paid from out of the trust fund such allowances, if any, as may be proposed by the Trust and approved by the State Government.

14A.

[Termination of appointment and re-constitution.

[Inserted by Rajasthan Act 7 of 1972. dated 19-4-1972.]

- Notwithstanding anything contained in section 11, 12 or 15, the State Government may, if it thinks fit in public interest so to do, terminate the appointment of Chairman or any Trustee of a Trust or re-constitute the same at any time.]

15.

Removal of Trustees.

(1)

The State Government may remove from the Trust any Trustee, who-

(a)

refuses to act, or becomes incapable of acting or absents himself for more than three consecutive months from the meetings of the Trust or of any committee of which he is a member and is unable to explain such absence to the satisfaction of the Trust, or

(b)

is an undischarged insolvent or has compounded with his creditors, or

(c)

has been convicted by a criminal court of an offence involving moral turpitude, such conviction not having sub-sequently been set aside, or

(d)

has knowingly acquired or continued to hold without the permission in writing of the State Government, directly or indirectly or by a partner, any share or interest in any contract or employment with, by or on behalf of the Trust, or

(e)

has knowingly acted as a Trustee in a matter other than a matter referred to in clause (c) of sub-section (2) in which he or a partner had, directly or indirectly, a personal interest, or in which he was professionally interested on behalf of a client, principal or other person, or

(f)

has acted in contravention of section 23, or

(g)

being a legal practitioner, in any suit or other proceedings acts or appears on behalf of any other person against the Trust, or acts or appears on behalf of any other person in any criminal proceeding instituted by or on behalf of the Trust.

(2)

A person shall not be deemed for the purpose of sub-section (1) to acquire, or continue to have, any share or interest in a contract or employment by reason only of his-

(a)

having a share or interest in any lease, sale or purchase of land or building or in any agreement for the same provided that such share or interest was acquired before he became a Trustee, or

(b)

having a share or interest in a newspaper in which an advertisement relating to the affairs of the Trust is inserted, or

(c)

holding a debenture or otherwise being interested in a loan raised by or on behalf of the Trust, or

(d)

having a share or interest in the occasional sale of an article, in which he regularly trades, to the Trust to a value not exceeding, in any one year, such amount as the Trust, with the sanction of the State Government, may fix in this behalf.

(3)

The State Government may remove from the Trust a Trustee who in its opinion has so flagrantly abused in any manner

his position as a Trustee as to render his continuance as a Trustee detrimental to the public interest.

(4)

When the State Government proposes to take action under the foregoing provisions of this section an opportunity of explanation shall be given to the Trustee concerned, and, when such action is taken, the reasons therefor shall be placed on record and communicated to him in writing.

16.

Disabilities of Trustees removed under section 15.

(1)

A Trustee removed under clause (a) or clause (c) of sub-section (1) of section 15, or under sub-section (3) of that section, shall not be eligible for further appointment or election for a period of three years from the date of his removal except when removed for continued absence.

(2)

A Trustee removed under clause (b) of sub-section (1) of section 15 shall not be so eligible until he has obtained his discharge or has paid his creditors in full as the case may be.

(3)

The Trustee removed under any other provision of section 15 shall not be so eligible until he is declared to be no longer ineligible, and he may be so declared by an order of the State Government.

17.

Filling of casual vacancies.

(1)

When the place of a Trustee appointed by the State Government becomes vacant by his resignation, removal, death or otherwise, the State Government shall appoint a person to fill the vacancy.

(2)

When the place of a Trustee elected under clause (b) of subsection (1) of section 9 becomes vacant by his resignation, removal, death or otherwise the vacancy shall be filled within two months of the existence of such vacancy being notified soon after the occurrence thereof to the Municipal Board by the Trust in the manner provided by sub-section (3) of the said section; provided that if the said Board fails to elect its members to fill the vacancy within the period prescribed above, the provisions of sub-section (4) of section 9 shall apply.

(3)

The term of office of a Trustee appointed or elected under this section shall be the remainder of the term of office of the Trustee in whose place he has been elected or appointed;

Provided that no person elected or appointed under sub-section (2) shall continue to be a Trustee after he has ceased to be a member of the Municipal Board.

Chapter IV

Proceedings of the Trust and Committees

18.

Conduct of business by Trust.

- The Trust shall meet as and when necessary and its business shall be conducted in accordance with regulations made under section 75.

19.

Temporary association of members with the Trust for particular purposes.

(1)

The Trust may associate with itself, in such manner and for such period as may be prescribed by regulation made under section 75, any person whose assistance or advice it may desire in carrying out any of the provisions of this Act.

(2)

A person associated with itself by the Trust under sub-section (1) for any purpose, shall have a right to take part in the discussions of the Trust relative to the purpose, but shall not have a right to vote at a meeting of the Trust and shall not be a member of the Trust for any other purpose.

20.

Constitution of committees.

(1)

The Trust may from time to time appoint committees consisting of a Trustee or Trustees and such other person of any of the following classes as it may think fit. namely:-

(i)

persons associated with the Trust under section 19:

(ii)

other persons whose assistance or advice the Trust may desire as members of a committee:

Provided that no committee shall consist of less than three persons.

(2)

The Trustee appointed to a committee or where two or more than two Trustees are so appointed such one of them as may be nominated by the Trust shall be the Chairman of such committee.

21.

Functions of committees.

(1)

The Trust may-

(a)

refer to a committee appointed under section 20, for inquiry and report, any matter relating to any of the purposes of this Act, and

(b)

delegate to such committee by specific resolution and subject to any regulation made under this Act any of the functions or duties of the Trust.

(2)

Every such committee shall conform to any instructions from time to time given to it by the Trust.

21A.

[Delegation of powers, duties and functions of the Trust.

[Inserted by Rajasthan Act 9 of 1978, dated 26-10-1978. w.e.f. 15-6-21978.]

- Any powers, duties and functions, which may be exercised, or performed by or on behalf of the Trust, may, by a specific resolution of the Trust and subject to such restrictions, limitations and conditions as may be prescribed by rules or regulations, be delegated to the Chairman or the Secretary or any other officer of the Trust, without prejudice to any powers conferred on any committee by or under section 21 of this Act.]

22.

Conduct of business of committees.

- A committee appointed under section 20 shall meet as and when necessary and conduct its business in accordance with regulations made under section 75.

23.

Trustees and associated members of Trust or committee not to take part in proceedings in which they are personally interested.

(1)

A Trustee who-

(a)

has directly or indirectly, by himself or by any partner, employer or employee, any such share or interest as is described in sub-section (2) of section 15, in respect of any matter, or

(b)

has acted professionally in relation to any matter on behalf of any person having therein any such share or interest as aforesaid, shall not vote or take any other part in any proceedings of the Trust or any committee relating to such matter.

(2)

If any Trustee or any person associated with the Trust under section 19 or any other member of a committee appointed under this Act has, directly or indirectly, any beneficial interest in any land situated in an area comprised in a scheme framed under this Act. or in any area in which it is proposed to acquire land for any of the purposes of this Act-

(i)

he shall, before taking part in any proceeding at a meeting of the Trust or any committee relating to such area, inform the person presiding at the meeting of the nature of such interest,

(ii)

he shall not vote at any meeting of the Trust or any committee upon any resolution or question relating to such land, and

(iii)

he shall not take any other part in any proceeding at a meeting of the Trust, or any committee relating to such area if the person presiding at the meeting considers it inexpedient that he should do so.

24.

Power to fix strength, salaries etc. of staff

- [Subject to any general or special direction issued by the State Government]

[Inserted by Rajasthan Act

21 of 1962

. dated 15-12-1962.]

every Trust shall, from time to time propose for the sanction of the State Government the strength of officers and servants to be appointed, setting forth the conditions of service and emoluments of each officer or servant. The State Government may sanction such proposal with or without amendment and no appointment shall be made otherwise than in accordance with such sanction:

[Provided that the Trust may, subject as aforesaid, direct that one person shall be appointed to discharge the duties of any two or more offices.]

[Inserted by Rajasthan Act

21 of 1962

, dated 15-12-1962.]

24A.

[Power of transfer. - The officers and employees of a Trust may be transferred by the State Government from one Trust to another or to the Jaipur Development Authority in accordance with the rules made under section 74.] [[Section 24-A Inserted by Rajasthan Act 16 of 1992, dated 5-5-1992 & then substituted by Rajasthan Act 18 of 1994, dated 30-4-1994, which was as under:-

'24-A Power of transfer - The officers and servants of a Trust may be transferred by the State Government from one Trust to another in accordance with the rules made under section 74.']]

25.

Power of appointment etc.

- Subject to the provisions of section 24 and to any rules for the time being in force, the power of appointing and granting leave to officers and servants of the Trust and censuring, reducing, suspending or dismissing them for misconduct and dispensing with their services for any reason other than misconduct, shall be vested-

(a)

in the case of officers and servants drawing such monthly salary as may be specified by the State Government for each Trust, in the Chairman, and

(b)

in other cases, in the Trust:

Provided that, in the case of Government servants whose services are lent to the Trust, the power of granting leave only will so vest and the other powers specified in this section will be exercisable by the State Government or by an appropriate authority of the State Government upon a complaint made by the Trust in that behalf or otherwise:

[Provided further that officers may be appointed to administrative and technical posts in the Trust by the State Government either from amongst staff holding posts in the Trust with nomenclature and duties corresponding to posts in a department of the Government from which promotions to similar posts are made or from amongst officers holding posts en-cadred in the Rajasthan Municipal Service, or the State sendees, and the strength of these services shall stand increased accordingly, if necessary.]

[Substituted by Rajasthan Act 8 of 1975. dated 15-3-1975.]

26.

Control by Chairman.

- The Chairman shall exercise supervision and control over the acts and proceedings of all officers and servants of the Trust and, subject to the foregoing sections, shall dispose of all questions relating to the service of the said officers and servants and their pay, privileges and allowances.

27.

Delegation of Chairman's functions.

(1)

The Chairman may, by general or special order in writing, delegate to any officer of the Trust any of his powers, duties or functions under this Act or under the rules made thereunder except the power to preside over the meetings of the Trust.

(2)

The exercise or discharge by any officer of any powers, duties or functions delegated under sub-section (1) shall be subject to such conditions and limitations, if any, may be specified in the said order and also to control and revision by the Chairman.

28.

Supply of information and documents to the State Government.

(1)

The Chairman shall forward to the State Government a copy of the minutes of the proceedings of each meeting of the Trust within ten days from the date on which the minutes of the proceedings of such meeting were signed as prescribed.

(2)

If the State Government so directs in any case, the Chairman shall forward to it a copy of all papers, which were laid before the Trust for consideration at any meeting.

(3)

The State Government may require the Chairman to furnish it with-

(a)

any return, statement, estimate, statistics or other information regarding any matter under the control of the Trust, or

(b)

a report on any such matter, or

(c)

a copy of any document in the charge of the Chairman.

(4)

The Chairman shall comply with every such requisition without unreasonable delay.

Chapter V

Framing of Schemes

29.

Schemes-matters to be provided therein.

(1)

The Trust shall, on the orders of the State Government or on its own initiative or on a representation made by the Municipal Board and subject to availability of Financial resources, frame schemes for the improvement of the urban area for which the Trust is constituted.

(2)

Such schemes may provide for all or any of the following matters, namely:-

(a)

the acquisition of any land or other property necessary for, or effected by, the execution of the scheme:

(b)

the re-laying out of any land comprised in the scheme;

(c)

the construction and re-construction of buildings:

(d)

the formation, construction and alteration of streets;

(e)

the closure or demolition of dwellings or portions of dwellings unfit for human habitation;

(f)

the demolition of obstructive buildings or portions of buildings:

(g)

the draining, water supply and lighting of streets:

(h)

the raising [or levelling]

[Inserted by Rajasthan Act 3 of 1963. dated 29-3-1963.]

of any land which the Trust may deem expedient to raise [or level]

[Inserted by Rajasthan Act 3 of 1963. dated 29-3-1963.]

;

(i)

the forming of open spaces for the benefit of the area comprised in the scheme or any adjoining area:

(j)

all or any of the sanitary arrangements required for the area comprised in the scheme;

(k)

the establishment and construction of markets and other places of public requirement or convenience;

(l)

the limitation of areas within which special trades or industries may or may not be carried on or which are reserved exclusively for residential or other purposes;

(m)

the division of any land into plots for the erection of buildings for residential purposes;

(n)

the erection of buildings on any site, the restrictions and conditions in regard to the open spaces to be maintained in or around such buildings, the height and character of such buildings and the architectural features of the elevation or frontage thereof;

(o)

the amenities to be provided in relation to any site or building or buildings on such site whether before or after the erection of such buildings and the person or authority by whom or at whose expense such amenities are to be provided;

(p)

the construction of buildings for the accommodation (including shops) of the poor and the working classes or of any other class of the inhabitant of the area comprised in the scheme including such classes as are likely to be displaced by the execution of the scheme;

(q)

the provision of facilities for communications;

(r)

the reclamation or reservation of land for gardens, afforestation and the provision of fuel and grass supply and other needs of the population;

(s)

the planting and preservation of trees and plantations;

(t)

the sale, letting or exchange of any property or land comprised in the scheme; and

(u)

any other matter for which in the opinion of the State Government it is expedient to make provision with a view to the improvement of the area comprised in the scheme or the general efficiency thereof.

30.

Matters to be considered when framing schemes.

- When framing scheme in respect of any area, regard shall be had to-

(a)

the nature and the conditions of such area and of neighbouring areas as a whole;

(b)

the several directions in which its expansion appears likely to take place;

(c)

the likelihood of schemes being framed for other parts of the area; and

(d)

such other matters as may be prescribed.

31.

Schemes to conform to Master plan.

(1)

If for and in respect of the urban area for which the Trust is constituted a master plan has been prepared and approved and is in operation, every scheme framed by the Trust in accordance with the provisions of this Chapter shall conform to such master plan and shall not be framed so as to affect on alteration in the different zones defined by the master plan.

32.

Previous notification of area for which scheme is framed, duration and effect of such notification.

(1)

Whenever the Trust decides to frame a scheme for any urban area, the State Government may, at the request of the Trust, issue a notification specifying such area and declaring that the Trust has decided to frame a scheme for such area.

(2)

A notification under sub-section (1) shall remain in force for six months from the publication thereof:

Provided that the State Government may, for sufficient reasons, extend the said period by a further period not exceeding six months.

(2A)

[Where in the opinion of the State Government, it is necessary so to do in public interest, it may, by order published in the Official Gazette, extend the period of the notification issued under sub-section (1) for such further period as it thinks fit, notwithstanding that the period of the notification or the extended period thereof under the provisions of sub-section (2) has expired. An order under this section may be made so as to be retrospective with effect on and from a date next following the expiration of the period of the notification or the extended period thereof under sub-section (2).]

[Inserted by Rajasthan Act 26 of 1976. dated 17-4-1976. w.e.f. 28-2-1976.]

(3)

If the sanction of a scheme is notified in accordance with section 38 in respect of such area before the expiry of the notification under this section, such notification shall continue in force until the scheme is carried out. '

(4)

During the period that a notification under this section remains in force in respect of any urban area, no building shall be erected, re-erected, altered or added within that area without the written sanction of the Trust.

33.

Preparation, publication and transmission of notice as to schemes and supply of documents to applicants.

(1)

When any scheme has been framed, the Trust shall prepare a notice stating-

(a)

the fact that the scheme has been framed,

(b)

the boundaries of the area comprised in the scheme, and

(c)

the place at which particulars of the scheme, a map of the area comprised in the scheme, and a statement of the land which it is proposed to acquire may be seen at reasonable hours.

(2)

The Trust shall-

(a)

publish the said notice in such manner as may be prescribed, inviting objections and suggestions from all persons with respect to the draft scheme before such date as may be specified in the notice, and

(b)

send a copy of the said notice to the Chairman of the Municipal Board.

(3)

The Chairman shall also cause copies of all documents referred to in clause (c) of sub-section (1) to be delivered to any applicant on payment of such fees as may be prescribed by regulations.

34.

Transmission to Trust of representation by Municipal Board as to scheme.

- The Chairman of any Municipal Board to whom a copy of a notice has been sent under clause (b) of sub-section (2) of section 33 shall within a period of sixty days from the receipt of the said copy, forward to the Trust any representation which the Municipal Board may think fit to make with regard to the scheme.

35.

Furnishing of copies of extracts from the assessment book of a local body.

- The Chairman of the Municipal Board shall furnish the Chairman of the Trust, at his request, with a copy of, or extracts from, the assessment list on payment of such fees as may be prescribed.

36.

Abandonment of scheme or application to Government to sanction it.

(1)

Alter the expiry of the date referred to in clause (a) of sub-section (2) of section 33 and of the period prescribed by section 34 in respect of any scheme the Trust shall consider any objections, suggestions and representations received thereunder and after affording to all persons making such objections, suggestions or representations a reasonable opportunity of being heard, the Trust may either abandon the scheme or apply to State Government for sanction of the scheme with such modifications, if any, as the Trust may consider necessary.

(2)

Every application submitted under sub-section (1) shall be accompanied by-

(a)

a description of, and full particulars relating to the scheme, and complete plans and estimates of the cost of executing the scheme:

(b)

a statement of the reasons for any modification made in the scheme as originally framed;

(c)

a statement of objections, if any, received under section 33;

(d)

any representation received under section 34; and

(e)

a statement of the arrangements made or proposed by the Trust for the re-housing of persons likely to be displaced by the execution of the scheme, for whose re-housing provision is required.

(3)

When any application has been submitted to the State Government under sub-section (1) the Trust shall cause notice of the fact to be published for two consecutive weeks in the official Gazette and in a local newspaper.

37.

Power to sanction, reject or return scheme.

(1)

The State Government may sanction, or may refuse to sanction or may return for reconsideration any scheme submitted to it under section 36.

(2)

If a scheme returned for reconsideration under sub-section (1) modified by the Trust it shall be re-published in accordance with section 33-

(a)

in every case in which the modification affects the boundaries of the area comprised in the scheme or involves the acquisition of any land not previously proposed to be acquired, and

(b)

in every other case, unless the modification is, in the opinion of the State Government, not of sufficient importance to require re-publication.

(3)

[Notwithstanding anything in section 29 or in any other provision of this Chapter,-

(a)

it shall be lawful for the State Government to sanction any scheme framed by any Trust before the commencement of the Rajasthan Urban Improvement (Amendment) Act, 1963 comprising in part, any area lying beyond the area for which such Trust was established;

(b)

upon such sanction being given, all previous notification issued, notices as to scheme prepared, published and transmitted, objections, suggestions or representations, if any, considered, applications for sanction submitted and the notices regarding such submission published in respect of such scheme shall be deemed to have been duly issued, prepared, published and transmitted, considered and submitted and such area shall, notwithstanding anything in section 8, be deemed to have been included in the area for which such Trust was established.]

38.

Notification of sanction of scheme.

(1)

Whenever the State Government sanctions a scheme it shall announce the fact by notification, and the Trust shall forthwith proceed to execute the same.

(2)

The publication of a notification under sub-section (1) in respect of any scheme shall be conclusive evidence that the scheme has been duly framed and sanctioned.

39.

Period for execution of a scheme.

(1)

While notifying the sanction of a scheme under section 38, the State Government shall also specify in such notification the period within which the scheme so sanctioned is required to be executed by the Trust.

(2)

If the Trust fails to complete the execution of the scheme within the period specified under sub-section (1), it shall make an application to the State Government setting forth the reasons for which the scheme could not be executed within the specified period and praying for its extension.

(3)

The State Government may, in consultation with the Municipal Board concerned, either refuse to extend or may extend the period and the fact of such refusal or extension shall be notified in the official Gazette.

40.

Alteration of scheme after sanction.

- At any time after a scheme has been sanctioned by the State Government and before it has been carried into execution, the Trust may alter it:

Provided that if any alteration is estimated to increase the estimated net cost of executing a scheme by more than Rs. 50,000/- or 5 per cent of such cost, whichever is less, the alteration shall not be made without the previous sanction of the State Government.

41.

Combination of schemes.

- Any number of areas in respect of which schemes have been or are proposed to be framed may, at any time, be included in one combined scheme.

41A.

[Provision for previously sanctioned scheme.

[Inserted by Rajasthan Act 6 of 1962, dated 21-4-1962, w.e.f. 30-12-1961.]

- Notwithstanding anything contained in this Chapter, all improvement and development schemes falling within the purview of this Act, framed by a former Trust or otherwise and sanctioned by the State Government in relation to any area within the State prior to the establishment of an Improvement Trust under this Act for that area, shall be deemed to be the schemes duly sanctioned and notified under and in accordance with the provisions of this Chapter.]

[Inserted by Rajasthan Act 3 of 1963. dated 29-3-1963.]

Chapter VI

Powers and Duties of the Trust where a Scheme has been sanctioned

42.

Transfer to Trust for purposes of scheme of building or land vested in Municipal Board.

- Whenever any building, or any street, square or other land or any part thereof which is vested in the Municipal Board is required for executing any scheme, the Trust shall give notice accordingly to the Chairman of such Board, and such building, street, square, land or part shall thereupon vest in the Trust, subject, in the case of any building to the payment to the said Board of such sum as may be required to compensate it for actual loss resulting from the transfer thereof to the Trust.

43.

Nazul lands.

(1)

The State Government may by notification in the official Gazette and upon such terms and conditions as may be agreed upon between it and the Trust, place at the disposal of the Trust all or any improved and unimproved lands in the urban area for which the Trust has been constituted and which may be vested in the State (known and hereinafter referred to as Nazul lands) for the purposes of improvement in accordance with a scheme framed and sanctioned under this Act.

(2)

No improvement of any Nazul land shall be undertaken or carried out except by, or under the control and supervision of the Trust after such land has been placed at the disposal of the Trust under sub-section (1).

(3)

After any such Nazul land has been improved by, or under the control and supervision of, the Trust, it shall be dealt with by the Trust in accordance with the rules made and directions given by the State Government in this behalf.

(4)

If any Nazul land placed at the disposal of the Trust under sub-section (1) is required at any time thereafter by the State Government the Trust shall, by notification in the official Gazette, replace it at the disposal of the State Government upon such terms and conditions as may be agreed upon between that Government and the Trust.

44.

Transfer of private street or square to Trust for purposes of scheme.

(1)

Whenever any street or square or part thereof which is not vested in the Municipal Board's required for executing any scheme, the Trust shall cause to be affixed in a conspicuous place in or near such street, square or part, a notice signed by the Chairman-

(a)

stating the purpose for which the street, square or part is required, and

(b)

declaring that the Trust will, on or after a date to be specified in the notice, such date being not less than thirty days after the date of the notice, take over charge of such street, square or part from the owner thereof: and shall simultaneously send a copy of such notice to the owner of such street, square or part.

(2)

After considering and deciding all objections, if any, received in writing before the date so specified, the Trust may take over charge of such street, square or part from the owner thereof: and the same shall thereupon vest in the Trust.

(3)

When the Trust alters or closes any street or square or part thereof which has vested in it under sub-section (2), it shall pay reasonable compensation to the previous owner for the loss of his rights therein.

(4)

If the alteration or closing of any such street, square or part causes damage or substantial inconvenience to owners of property adjacent thereto or to residents in the neighbourhood, the Trust-

(i)

shall forthwith provide some other reasonable means of access for the use of persons who were entitled to use such street, square or part as a means of access to any property or place, and

(ii)

if the provision of such means of access does not sufficiently compensate any such owner or resident for such damage or inconvenience, shall also pay him reasonable compensation in money.

45.

Provision of drain or water work to replace another situated on land vested in the Trust under section 42 or section 43 or section 44.

(1)

When any building or any street, square or other land, or any part thereof, has vested in the Trust under section 42 or section 43 or section 44, no drain or water work therein shall vest in the Trust until another drain or water work, as the case may be, if required, has been provided by the Trust, to the satisfaction of the Municipal Board in place of the former drain or water work.

(2)

If any question or dispute arises as to whether another drain or water work is required or as to the sufficiency of any drain or water work provided by the Trust under sub-section (1) the matter shall be referred to the State Government whose decision shall be final.

46.

Power of Trust to turn or close street or square vested in it.

(1)

The Trust may-

(a)

turn, divert, discontinue the public use of, or permanently close, any public street vested in it or any part thereof, or

(b)

discontinue the public use of, or permanently close, any public square vested in it or any part, thereof.

(2)

Whenever the Trust discontinues the public use of, or permanently closes, any public street vested in it or any part thereof, it shall pay reasonable compensation to every person who was entitled, otherwise than as mere licensee, to use such street or part as a means of access and has suffered damage from such discontinuance or closing.

(3)

Whenever the Trust discontinues the public use of, or permanently closes, any public square vested in it or any part thereof, it shall pay reasonable compensation to every person-

(a)

who was entitled, otherwise than as a mere licensee, to use such square or part as a means of access, or

(b)

whose immovable property was ventilated by such square or part, and who has suffered damage-

(i)

in case (a), from such discontinuance or closing, and

(ii)

in case (b), from the use to which the Trust has put such square or part.

(4)

In determining the compensation payable to any person under sub-section (2) or sub-section (3), the Trust shall make allowance for any benefit accruing to him from the construction, provision or improvement of any other public street or square at or about the same time that the public street or square or part thereof, on account of which the compensation is paid, is discontinued or closed.

(5)

When any public street or square vested in the Trust, or any part thereof, is permanently closed under sub-section (1), the Trust may sell or lease so much of the same as is no longer required.

47.

Powers under the Municipal Laws vested in the trust.

(1)

Such provisions of the Municipal law for the time being in force in any part of the State as may be prescribed in the case of each Trust, shall so far as may be consistent with the tenor of this Act, apply to [the urban area for which the Trust is established under this Act and]

[Substituted by Rajasthan Act 26 of 1976, dated 17-4-1976, w.e.f. 28-2-1976.]

all references in the said provisions to the Municipal Board, Council or Corporation shall be construed as references to the Trust which, in respect of any [such urban area]

[Substituted by Rajasthan Act 26 of 1976. dated 17-4-1976. w.e.f. 28-2-1976.]

may alone exercise and perform all or any of the powers and functions which under any of the said provisions might have been exercised and performed by the Municipal Board, Council or Corporation or by the Chairman or President or by any officer thereof:

Provided that the Trust may delegate to the Chairman or to any officer of the Trust all or any of the powers conferred under this section.

[x x x]

[Clauses (2) to (5), omitted by Rajasthan Act 26 of 1976, dated 17-4- 1976, w.e.f. 28-2-1976.]

48.

Transfer of duties etc. of Municipal Board to Trust.

- The State Government may by notification in the official Gazette transfer to the Trust any of the duties, powers, functions and responsibilities of the Municipal Board and thereupon the Trust shall carry out, exercise, perform and discharge such duties, powers, functions and responsibilities.

49.

Power to make surveys or contribute towards their cost.

- The Trust may-

(a)

cause a survey of any land to be made whenever it considers that a survey is necessary or expedient for carrying out any of the purposes of this Act, or

(b)

contribute towards the cost of any such survey made by any other local authority.

50.

Vesting in Municipal Board of street laid out or altered and open spaces provided by the Trust under scheme.

(1)

Whenever the Municipal Board is satisfied-

(a)

that any street laid out or altered by the Trust has been duly levelled, paved, metalled, flagged, channelled, sewered and drained in the manner provided in the scheme sanctioned by the State Government under this Act,

(b)

that such lamps, lamp-posts and other apparatus for the lighting of such street as ought to be provided by the Trust have been so provided, and

(c)

that water and other sanitary conveniences have been duly provided in each street, the Municipal Board, after obtaining the assent of the Trust, or failing such assent, the assent of the State Government under sub-section (3), shall, by a written notice affixed in some conspicuous position in such street, declare the street to be a public street; and the street shall thereupon vest in the Municipal Board and shall thenceforth be maintained, kept in repair, lighted, and cleansed by the said Board.

(2)

When any open space for purposes of ventilation or recreation has been provided by the Trust in executing any scheme, it shall, on completion, be transferred to the Municipal Board by resolution of the Trust and shall thereupon vest in, and be maintained at the expense of the said Board:

Provided that the said Board may require the Trust, before any such open space is so transferred, to enclose, level, turf, drain and lay out such space and provide footpaths therein, and if necessary, to provide lamps and other apparatus for lighting it.

(3)

If any difference of opinion arises between the Trust and the Municipal Board in respect of any matter referred to in the foregoing provisions of this section, the matter shall be referred to the State Government, whose decision shall be final.

Chapter VII

Acquisition and Disposal of Land

51.

Power to purchase or lease by agreement.

- The Trust may enter into an agreement with any person for the purchase, leasing or exchange by the Trust from such person, of any land which the Trust is authorised to acquire or any interest in such land.

52.

Compulsory acquisition of land.

(1)

Where on a representation from the Trust [or otherwise]

[Inserted by Rajasthan Act

10 of 1973

. dated 28-3-1973.]

it appears to the State Government that any land is required for the purpose of improvement or for any other purpose under this Act, the State Government may acquire such land [under and in accordance with the provisions of the Land Acquisition Act, 1894 (Central Act 1 of 1894)]

[Substituted by Rajasthan Act 29 of 1987. dated 4-11-1987. w.e.f. 1-8-1987.]

.

[x x x]

[Clauses (3) to (6). Deleted by Rajasthan Act No. 29 of 1987. dated 4-11- 1987, w.e.f. 1-8-1987.]

[(2)]

[Substituted by Rajasthan Act

10 of 1973

, dated 28-3-1973.]

After the land has been acquired and its possession taken, the State Government shall, on payment of the amount of compensation as determined under [section 11 of the Land Acquisition Act, 1894 (Central Act 1 of 1894)]

[Substituted by Rajasthan Act 29 of 1987. dated 4-11-1987. w.e.f. 1-8-1987.]

the amount of interest thereon and of all other charges incurred by the State Government in this connection, transfer it to the Trust or to any other prescribed authority or department for the purpose for which it is acquired:]

[Provided that such transfer of the land may be made to the Trust or to any other prescribed authority or the department of the Government without recovering any amount,-

(i)

where the State Government is satisfied that any such land is urgently needed by the Trust, prescribed authority or department of the Government for carrying out improvement under the Act immediately, or

(ii)

where any such land is intended to be allotted free of charge to the Scheduled Castes, Scheduled Tribes or to person entitled under section 31 of the Rajasthan Tenancy Act, 1955 (Rajasthan Act 3 of 1955) to possess a site for a residential house in the 'abadi' of the urban area free of charge.]

(8)

[x x x]

[Deleted by Rajasthan Act 29 of 1987. dated 4-11-1987. w.e.f. 1-8-1987.]

53.

to 59B.

[Deleted]

[Deleted by Rajasthan Act 29 of 1987. dated 4-11-1987, w.e.f. 1-8-1987.]

60.

Disposal of land by the Trust.

(1)

The Trust may-

(a)

with the sanction of the State Government, dispose of [by way of allotment, regularization or auction,]

[Inserted by Rajasthan Act 21 of 1999. dated 11-10-1999. w.e.f. 17-6-1999.]

any land acquired by the State Government and transferred to the Trust without undertaking or carrying on any improvement thereon, or

(b)

subject to any directions given by the State Government dispose of any such land after undertaking or carrying on such improvement as it thinks fit,

to such persons, in such manner and subject to such terms and conditions as it considers expedient for securing the improvement of the urban area concerned according to the [master plan or the scheme or both]

[Substituted by Rajasthan Act 3 of 1963, dated 29-3-1963.]

(2)

The power of the Trust with respect to the disposal of land under sub-section (1) shall be so exercised as to secure, so far as practicable, that persons who are living or carrying on business or other activities on the land shall, if they desire to obtain accommodation on land belonging to the Trust and are willing to comply with any requirements of the Trust as to its improvement and use have an opportunity to obtain thereon accommodation suitable to their reasonable requirements on terms settled with due regard to the price at which any such land has been acquired from them:

Provided that where the Trust proposes to dispose of by sale any land without any improvement having been undertaken or carried out thereon, it shall offer the land in the first instance to the persons from whom it was acquired, if they desire to purchase it, subject to such requirements as to its improvement and use as the Trust may think fit to impose.

(3)

[Nothing in this Act shall be construed as enabling the Trust to dispose of land by way of gift but subject as aforesaid references in this Act to the disposal of land shall be construed as references to the disposal thereof in any manner, whether by way of sale, exchange, mortgage or lease or by the creation of any easement, right or privilege or otherwise.] [[Substituted by Rajasthan Act 11 of 2004, dated 10-8-2004. for the following:-

'(3) Nothing in this Act shall be construed as enabling the Trust to dispose of land by way of gift, mortgage or charge but subject as aforesaid references in this Act to the disposal of land shall be construed as references to the disposal thereof in any manner, whether by way of sale, exchange or lease or by the creation of any easement, right or privilege or otherwise.']]

(4)

[All lands which are deemed to have been placed at the disposal of the Trust under section 90-B of the Rajasthan Land Revenue Act, 1956 (Act

No. 15 of 1956

) upon resumption or surrender of tenancy rights and interest of khatedars thereof, as the case may be, shall be available for allotment or regularization preferably to the persons having possession over such land or part thereof, as the case may be, on the basis of allotment made or Patta given to them by the Housing Co-operative Society or on the basis of any other document of transfer of land to them either by tenant or any other person claiming through the tenant, whose tenancy rights have been resumed or surrendered, under the said provision, on such terms and conditions and subject to payment to the Trust of such charges or premium or both, as the case may be, and at such rates as may be prescribed by the State Government in this behalf:

Provided that no allotment or regularization of any land shall be made which has been duly earmarked for public utilities/services such as park, nursery, civil or military aviation, bus stand, transport terminal, railways, public roads, highways, footpath, sewage lines, water supply, electricity supply, telephone lines, hospital, school, educational institution, university, cremation ground, grave-yard and for such other purposes as State Government may specify by notification in the Official Gazette.

(5)

The charges realised under sub-section (4) shall be credited to the Consolidated Fund of the State and the fund of the Trust as may be determined by the State Government.]

[Sub-Section (4)&(5), Inserted by Rajasthan Act 21 of 1999, dated 11-11- 1999. w.e.f. 17-6-1999.]

60A.

[Transitory provisions for pending matters relating to acquisition of land.

[Section 60-A Inserted by Rajasthan Act 29 of 1987, dated 4-11-1987, w.e.f. 1-8-1987 then substituted by Rajasthan Act 5 of 1995, dated 6-4-1995.]

(1)

Notwithstanding anything otherwise contained in sub-section (1) of section 52, where, in any matter relating to the

acquisition of land pending between 24th day of September, 1984 and 31st July, 1987, an action, thing or order has been taken, done or made under and in accordance with the provisions of this Act, as it stood before the 1st day of August, 1987, such action, thing or order shall not be re-opened or reviewed or be liable to be challenged on the ground that such action, thing or order was at variance with that provided in the Land Acquisition Act, 1894 (Central Act 1 of 1984) (hereinafter in this section referred to as the Land Acquisition Act) subject, however, that any further proceeding, action or order in such matter conducted, taken or made on or after the 1st day of August, 1987 shall, subject to the other provisions of this section, be made under and in accordance with the Land Acquisition Act.

(2)

The amount of compensation or interest or that payable for any other reason shall, in a matter pending on the 1st day of August, 1987, be payable under and in accordance with the provisions of the Land Acquisition Act and the money paid prior to the 1st day of August, 1987 shall be deducted from or adjusted against the said amount.

(3)

Where in a matter pending on the 1st day of August, 1987, a notice under sub-section (2) of section 52 or a notice under subsection (1) thereof has been served or, as the case may be, published, such notice shall be deemed to be the notification or declaration published or made under sub-section (1) of section 4 or, as the case may be, under sub-section (1) of section 6 of the Land Acquisition Act and the declaration or award in such a matter shall be made within a period of one year or, as the case may be, two years from the 1st day of August, 1987.

(4)

Where any land has, prior to the 1st day of August, 1987, vested in the State Government or its possession has been taken in accordance with the provisions of this Act as it stood before the 1st day of August, 1987, such vesting or possession of land shall not be liable to be challenged on the ground that no amount of compensation was tendered and paid in accordance with sub-section (3-A) of section 17 of the Land Acquisition Act, subject, however, that such amount shall be tendered and paid within a period of six months from the 1st day of August, 1987.

(5)

In determining the amount of compensation to be awarded in a matter pending on the 1st day of August, 1987, the market value of the land at the date on which the notice was published in the Official Gazette under sub-section (2) of section 52, as it stood before the 1st day of August, 1987, shall be taken into consideration.]

[Added by Rajasthan Act 26 of 1976, dated 17-4-1976. w.e.f 28-2-1976.]

(6)

[Every transfer of land under this section shall be either on free hold basis or on lease hold basis.

(7)

Any land sold, allotted, regularized or otherwise transferred on lease hold basis may be converted in free hold basis subject to such terms and conditions, and on payment of such conversion charges, as may be prescribed.

Explanation. - For the purposes of this section, "free hold" means tenure in perpetuity with right of inheritance and alienation.]

[Added by Rajasthan Act

No. 4 of 2007

, dated 7.4.2007.]

Validation. - Notwithstanding anything contained in any judgment, decree or order or finding of any court, tribunal or Authority to the contrary, any action, thing or order taken, done or made under and in accordance with the provisions relating to acquisition of land contained in the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act 35 of 1959

), shall be deemed to be valid and effective as if such action, thing or order has been made, taken or done under the said Act as amended by this Act.

Chapter VIII

Finance

61.

Improvement Fund.

(1)

A fund to be called the 'Improvement Fund' of the place where the principal officer of a Trust is situated shall be constituted for each Trust as soon as it is formed.

(2)

There shall be credited to this Fund-

(i)

such sums as may be placed by the State Government at the disposal of the Trust, from time to time, either by way of loan or as subsidy;

(ii)

such contribution from the Municipal Board as may, from time to time, be ordered by the State Government to be made, after considering the relief or addition to the resources of such Board accruing or likely to accrue from the schemes undertaken by the Trust;

(iii)

the rents, profits and sale proceeds of all lands, buildings and other property vested or vesting in or acquired by the Trust under this Act;

(iv)

sums borrowed by the Trust with the previous sanction of the State Government subject to the prescribed conditions, for any of the purposes of the Trust; and

(v)

all fees and charges payable to or received by the Trust under this Act.

62.

Power of Trust to levy betterment charges.

(1)

Where as a consequence of any scheme having been executed by the Trust in any area, the value of any property in that area, in the opinion of the Trust, has increased or will increase, the Trust shall, with the sanction of the State Government, be entitled to levy upon the owner of the property or any person having interest therein a betterment charge in respect of the increase in the market value of the property resulting from the execution of the scheme.

(2)

Such betterment charge shall be an amount equal to one-fourth of the amount by which the market value of the property on the completion of the execution of the scheme, estimated as if the property were clear of buildings, exceeds the market value of the property prior to such execution estimated in like manner.

63.

Assessment of betterment charge.

(1)

Where it appears to the Trust that any particular scheme is sufficiently advanced to enable the amount of the betterment charge to be determined, the Trust may, by an order made in this behalf, declare that, for the purpose of determining the betterment charge, the execution of the scheme shall be deemed to have been completed and shall thereupon give notice in writing to the owner of the property or any person having an interest therein that the Trust proposes to assess the amount of the betterment charge in respect of the property under section 62.

(2)

The Trust shall then assess the amount of the betterment charge payable by the person concerned after giving such person an opportunity to be heard and such person shall, within three months from the date of receipt of the notice in writing of such assessment from the Trust, inform the Trust by a declaration in writing that he accepts the assessment or dissents from it.

(3)

When the assessment proposed by the Trust is accepted by the person concerned within the period specified in sub-section (2), such assessment shall be final.

(4)

If the person concerned dissents from the assessment or fails to give the Trust the information required by sub-section (2) within the period specified therein, the matter shall be determined by arbitrators in the manner provided in section 64.

64.

Settlement of betterment charge by arbitrators.

(1)

For the determination of the matter referred to in sub-section (4) of section 63, the State Government shall appoint three

arbitrators of whom one at least shall have special knowledge of the valuation of land.

(2)

Arbitrator shall follow such procedure as may be prescribed.

(3)

In the event of any difference of opinion among the arbitrators, the decision of the majority shall prevail and that decision shall be the award of the arbitrators.

(4)

If any arbitrator dies, resigns, or is removed under sub-section (5) or refuses or neglects, in the opinion of the State Government to perform his duties or becomes incapable of performing the same, then the State Government shall forthwith appoint another fit person to take the place of such arbitrator.

(5)

If the State Government is satisfied after such inquiry as it thinks fit-

(a)

that an arbitrator has misconducted himself, the State Government may remove him from his office; or

(b)

that the award of the arbitrator has been improperly procured or that any arbitrator has misconducted himself in connection with such award, the State Government may set aside the award.

(6)

An award which has not been set aside by the State Government under clause (b) of sub-section (5) shall be final and shall not be questioned in any court.

(7)

The provisions of the Arbitration Act, 1940 (Central Act 10 of 1940), shall not apply to the arbitration under this section.

65.

Payment of betterment charge.

(1)

The betterment charge levied under this Act shall be payable in such number of installments and each installment shall be payable at such time and in such manner as may be fixed by regulations made in this behalf.

(2)

Any arrear of betterment charge shall be recoverable in the manner laid down in the Municipal law for the time being in force for the recovery of municipal claims.

66.

Custody, investment and application of Trust Fund.

(1)

All the moneys of the Trust shall be kept in a Government treasury or sub-treasury or a bank to which the Government treasury business has been made over.

(2)

Nothing in the foregoing sub-section shall be deemed to preclude a Trust from investing, with the previous sanction of the State Government, any such moneys which are not required for immediate expenditure, in any of the securities described in section 20 of the Indian Trusts Act, 1882 (Central Act 2 of 1882) or placing them in fixed deposit with a bank approved by the State Government.

(3)

The Trust Fund shall be applied towards meeting the expenses incurred by the Trust in the carrying out of schemes framed and sanctioned under this Act, and in the administration of the other provisions of this Act and for no other purpose.

66A.

[Power of the Trust to borrow.

[Section 66-A, Inserted by Rajasthan Act 11 of 2004, dated 10-8-2004.]

- The Trust may, with the previous approval of the State Government, borrow any money for carrying out the purposes of this Act or for servicing any loan obtained by it. at such rates and on such conditions as the State Government may determine at the time money is borrowed.]

67.

Budget of the Trust.

- The Trust shall prepare in such form and at such time every year as may be prescribed a budget in respect of the financial year next ensuing, showing the estimated receipts and expenditure of the Trust and shall forward to the State Government such number of copies thereof as may be prescribed.

68.

Accounts and Audit.

- (1) The Trust shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance sheet in such form as the State Government may prescribe.

(2)

The accounts of the Trust shall be subject to audit annually by the Examiner of Local Fund Audit and the provisions of the Rajasthan Local Fund Audit Act, 1954 (Rajasthan Act 38 of 1954) shall apply.

69.

Annual Report.

- The Trust shall prepare for every year a report of its activities during that year and submit the report to the State Government in such form and on or before such date as may be prescribed.

70.

Pension and provident funds.

(1)

The Trust shall constitute for the benefit of its officers and other employees, in such manner and subject to such conditions as may be prescribed, such pension and provident funds as it may deem fit.

(2)

Where any such pension or provident fund has been constituted, the State Government may declare that the provisions of the Provident Funds Act, 1925 (Central Act 19 of 1925) shall apply to such fund as if it were a Government Provident Fund.

71.

Failure to repay loans or other dues.

- If the Trust fails to repay any loan or any interest or costs in respect thereof, according to the conditions of the loan, the State Government will attach the rents and other income of the Trust and apply the same in satisfaction of such loan and other dues.

Chapter IX

General Provisions as to Improvement

[72. Restrictions on improvement in urban areas. - (1) In an urban area, no improvement shall be undertaken or carried out by any person or department of the Government unless-

(i)

it is in accordance with the master plan where it is in operation; or

(ii)

it is in accordance with the scheme sanctioned and notified under section 38; or

(iii)

where neither any master plan nor any scheme is in force, it is according to the general approval of the Trust, and unless permission for undertaking or carrying out such improvement has been obtained in writing under the provisions of section 73.

(2)

No person or department of Government shall use or permit to be used any land or building in any urban area otherwise than in conformity with the master plan where it is in operation or with the scheme sanctioned and notified under section 38 or with the general approval of the Trust, and unless the permission of the Trust for such use has been obtained under section 73:

Provided that subject to the provisions of section 73B, it shall be lawful for any person or department to continue to use, upon such terms and conditions, as may be prescribed by regulations made in this behalf, any land or building for the purpose and to the extent for and to which, it is being used upon the date on which such plan or scheme comes into force or as the case may be, the area is declared as an urban area under this Act.]

[Substituted by Rajasthan Act 26 of 1976. dated 17-4-1976. w.e.f. 28-2-1976.]

73.

Application for permission.

(1)

Every person or department of the Government desiring to obtain the permission referred to in section 72 shall make an application in writing in such form and containing such particulars in respect of the improvement to which the application relates as may be prescribed by regulations.

(2)

Every application under sub-section (1) shall be accompanied by such fee as may be prescribed:

Provided that no such fee shall be necessary in the case of an application made by a department of the Government.

(3)

On the receipt of an application for permission under subsection (1), the officer or authority competent under section 72 to grant the permission, after making such inquiry as may be considered necessary in relation to any matter, shall, by order in writing, either grant the permission, subject to such conditions, if any, as may be specified in the order or refuse to grant such permission:

Provided that, before making an order refusing such permission, the applicant shall be given a reasonable opportunity to show cause why the permission should not be refused.

(4)

Where permission is refused the grounds of such refusal shall be recorded in writing and communicated to the applicant in the manner prescribed by regulations.

(5)

A register of applications for permission under this section shall be kept in such form as may be prescribed by regulations.

(6)

The said register shall contain such particulars including information as to the manner in which applications for permission have been dealt with as may be prescribed by regulations and shall be available for inspection by any member of the public at all reasonable hours on payment of such fee not exceeding rupees five as may be prescribed by regulations.

(7)

Where permission is refused under this section, the applicant or any person claiming through him shall not be entitled to get refund of the fee paid on the application for permission but, on an application for refund being made within three months of the communication of the grounds of the refusal under sub-section (4) such portion of the fee as may seem proper in the circumstances, of the case may be refunded.

(8)

[Where in any urban area, an application for undertaking or carrying out an improvement is made to the Trust in the prescribed form and with the prescribed fees and after the receipt of the application to the Trust neglects or omits for one month to grant permission or to reject the application for reasons to be recorded by it, the applicant may, by a written communication, call the attention of the Trust to the omission or neglect, and if such omission or neglect continues for a further period of fifteen days from the date of such communication, the Trust shall be deemed to have permitted the proposed work absolutely and such work may be proceeded within the manner specified in the notice:

Provided that nothing herein contained shall be construed to authorise any person to act in contravention of any other provisions of this Act or the rules and regulations made thereunder, relating to any matter other than the requirement of obtaining permission of the Trust before undertaking or carrying out any improvement under this Act.

(9)

Any person aggrieved by an order of the Trust giving permission subject to conditions imposed by it or refusing to give permission under this Act, may appeal to the Collector, within thirty days from the date of the order giving or refusing such permission, exclusive of the time requisite for obtaining a copy thereof. No such order shall be called in question otherwise than by such appeal.

(10)

The appellate authority may, if it thinks fit for reasons to be recorded, extend the period allowed for appeal. The order of the appellate authority shall be final:

Provided that no order under appeal shall be modified or set aside by the appellate authority until the appellant and the

Trust have had a reasonable opportunity of being heard.]

[Inserted by Rajasthan Act 26 of 1976, dated 17-4-1976, w.e.f. 28-2-1976.]

[73A. Sanction for sub-division or reconstitution of plots. - (1) Any person who intends to sub-divide or re-constitute his plot lying in the area of a Trust established under section 8 shall submit the lay-out plan together with the prescribed particulars to the Trust for sanction.

(2)

Subject to any rules that may be made in this behalf, the Trust may, within the prescribed period, sanction such plan either without modifications or subject to such modifications and conditions as it considers expedient or may refuse to give sanction, if the Trust is of opinion that such division or re- constitution is not in any way consistent with the proposals of improvement of the urban area of the Trust.

(3)

If any person does any work in contravention of sub-section (1) or in contravention of the modifications and conditions of the sanction granted under sub-section (2) or despite refusal for the sanction piper sub-section (2), the Trust may direct such person by notice in writing to stop any work in progress and after making an enquiry in the prescribed manner, remove or pull down any work or restore the land to its original condition.

(4)

Any expenses incurred by the Trust under sub-section (3) shall be a sum due to the Trust under this Act from the person in default.]

[Added by Rajasthan Act 3 of 1963, dated 29-3-1963.]

[x x x]

[Deleted by Rajasthan Act 9 of 1978. dated 26-10-1978.]

[73B. Restriction on change of use of land and power of the State Government to allow change in the use of land. - (1) Notwithstanding anything contained in section 72 and 73-A,-

(i)

no person shall use or permit the use of any land situated in any urban area notified under section 8, for the purpose other than that for which such land was originally allotted or sold to any person by the State Government, any Urban Improvement Trust, any other local authority or any other body or authority in accordance with any law for the time being in force or, otherwise than as specified under a Master Plan, wherever it is in operation;

(ii)

in the case of any land not allotted or sold as aforesaid and no covered under clause (i), no person shall use or permit the use of any such land situated in a Urban Area notified under section 8, for the purpose other than that for which such land-use was or is permissible, in accordance with the Master Plan, wherever it is operation, or under any law for the time being in force.

(2)

Notwithstanding anything contained in sub-section (1), the State Government or any authority authorised by it, by notification in the Official Gazette, may allow the owner or holder of any such land, to have change of use thereof, if it is satisfied so to do in public interest, on payment of conversion charges at such rates and in such manner as may be prescribed with respect to the following changes in use:-

(i)

from residential to commercial or any other purpose; or

(ii)

from commercial to any other purpose; or

(iii)

from industrial to commercial or any other purpose; or

(iv)

from cinema to commercial or any other purpose; or

(v)

from any existing permissible use of land to any other purposes, as the State Government may prescribe:

Provided that rates of conversion charges may be different for different areas and for different purposes.

(3)

Any person who has already changed the use of land in violation of the provisions of this Act in force at the time of

change of use, shall apply to the State Government or any authority authorised by it under sub-section (2), within such period as may be prescribed, for regularisation of said use and upon regularisation of the change of use of land, he shall deposit the amount contemplated under sub-section (2).

(4)

Where the State Government or the authority authorised by it is satisfied that a person who ought to have applied for permission or regularisation under this section, has not applied and that such permission can be granted or the use of land can be regularised, it may proceed to determine the conversion charges after due notice and hearing the party/parties and the charges so determined shall become due to the Urban Improvement Trust and be recoverable under subsection (6).

(5)

The conversion charges so realised shall be credited to fund of the Urban Improvement Trust.

(6)

Charges under this section shall be the first charge on the interest of the person liable to pay such charges with respect to the land, the use of which has been changed and shall be recoverable as arrears of land revenue.] [[Inserted by Rajasthan Act 9 of 1978, dated 26-10-1978 & Substituted by Rajasthan Act 19 of 2000, dated 20-11-2000. for the following:-

'73-B. Power of State Government to allow change In use of land.- (1) Notwithstanding anything contained in section 72 or 73-A. the State Government or any authority authorised by the State Government may, in the public interest allow any person to use the land for purposes other than for which it was originally allotted or sold to him by any local authority or State Government or for purposes restricted in a scheme framed under section 29. on payment of such conversion charges as may be prescribed:

Provided that the rates of conversion charges may be different for different areas.

(2)

The conversion charges so realised shall be credited to the Consolidated Fund of the State or to the fund of the Trust as may be determined by the State Government.

(3)

Such charge shall be the first charge on the interest of the person liable in the land the use of which has been changed and shall be recoverable as arrears of land revenue.']]

Chapter X

Rules and Regulations

74.

Power of Government to make rules.

(1)

The State Government may make rules consistent with this Act-

(a)

as to the authority on which money may be paid from the Trust fund;

(b)

for prescribing the fees payable for a copy of or extracts from the assessment list under section 35 or section 73;

(bb)

[for prescribing standards for the sub-division or re- constitution of plots, lay-out of private streets etc., and, for provision of roads, lanes, water connections, electric connections and other amenities to be provided for by the owner at his costs; [Sub-clauses (bb) & (bbb). Inserted by Rajasthan Act 3 of 1963. dated 29- 3-1963.]

(bbb)

for prescribing the particulars to be submitted under subsection (1) of section 73A, and the period during which the plan shall be sanctioned or refused under sub-section (2) of the same;]

(c)

as to the conditions on which officers and servants of the Trust appointed to offices requiring professional skill may be appointed, suspended or dismissed;

(d)

as to the intermediate office or offices, if any, through which correspondence between the Trust and the State Government or officers thereof shall pass;

(e)

as to the manner and form in which the Trust shall maintain accounts and prepare an annual statement thereof including the balance sheet;

(f)

as to the authority by whom, the conditions subject to which and the mode in which contracts may be entered into and executed on behalf of the Trust;

(g)

as to the form in which and the time at which the Budget shall be prepared;

(h)

as to the returns, statements and reports to be submitted by the Trust;

(i)

as to the mutual relations to be observed between the Trust and other local authorities in any matter in which they are jointly interested;

(j)

for regulating the grant of leave allowances and acting allowances to the officers and servants of the Trust;

(jj)

[for prescribing the conditions under which the officers and employees of a Trust may, under section 24A, be transferred from one Trust to another or to the Jaipur Development Authority;] [[Clause (jj) Inserted by Rajasthan Act 16 of 1992. dated 5-5-1992 & then Substituted by Rajasthan Act 18 of 1994, dated 30-4-1994, for the following:-

'(jj) for prescribing the conditions under which the officers and servants of a Trust may, under section 24A, be transferred from one Trust to another.']]

(k)

for establishing and maintaining a pension, provident or annuity fund, for compelling all or any of the officers in the service of the Trust to contribute to such fund at such rates and subject to such conditions as may be prescribed and for supplementing such contributions out of the funds of the Trust:

Provided that a Government servant employed as an officer or servant of the Trust shall not be entitled to leave or leave allowance otherwise than as may be prescribed by the conditions of his service under the State Government;

(l)

for determining the conditions under which the officers and servants of the Trust or any of them shall, on retirement, receive pensions or gratuities or compassionate allowances and the amount of such pensions, gratuities and compassionate allowances;

(m)

for regulating every matter which, under this Act, may be or is required to be prescribed; [x x x]

[Omitted by Rajasthan Act 20 of 1974, dated 20-9-1974.]

(n)

generally for the guidance of Trusts and public officers in all matters connected with the carrying out of the provisions of this Act [;]

[Substituted by Rajasthan Act 20 of 1974, dated 20-9-1974.]

(o)

[for prescribing the rates of conversion charges; and

[Sub-clauses (o) & (p), Inserted by Rajasthan Act 20 of 1974, dated 29-9-1974.]

(p)

as to the authority to which, and the manner in which an application for permission for change of use of land shall be made, and the manner in, and the authority by, which conversion charges, payable in respect thereof shall be fixed.]

(2)

[No rule made under sub-section (1) shall take effect until it is published in the official Gazette, and no such rule shall be made except after previous publication:

Provided that any such rule may be made without previous publication if the State Government considers that it should, in public interest, be brought into force at once.]

[Substituted by Rajasthan Act 26 of 1976, dated 17-4-1976. w.e.f. 28-2-1976.]

75.

Power of the Trust to make regulations.

(1)

Every Trust may, from time to time make regulations consistent with this Act and with any rules made under this Act by the State Government-

(a)

for fixing the amount of security to be furnished by any officer or servant of the Trust from whom it may be deemed expedient to require security,

(b)

for associating members with the Trust under section 19,

(c)

for appointing persons, other than Trustees and persons associated with the Trust under section 19, to be members of committees under section 20,

(d)

for regulating the delegation of powers or duties of the Trust to committees or to the Chairman [or to the Secretary or any other officer of the Trust,]

[Inserted by Rajasthan Act 9 of 1978. dated 26-10-1978. w.e.f. 15-6-1978.]

(e)

for regulating, summoning and holding of meetings of the Trust and the committees appointed by it and the conduct of business thereat,

(f)

for the guidance of persons employed by it under this Act,

(g)

for prescribing the fees payable for copies of documents delivered under sub-section (3) of section 33 or under section 76,

(h)

[for permitting under section 73 the improvement in the urban area or the management, use and regulation of any land or building including its erection, re-erection and enlarging of its wall or any projecting portion,]

[Substituted by Rajasthan Act 26 of 1976. dated 17-4-1976. w.e.f. 28-2-1976.]

(i)

generally for carrying out the purpose of this Act.

(2)

All regulations made under sub-section (1) shall be subject to the sanction of the State Government and shall, when so sanctioned, [come into force upon their publication in the official Gazette]

[Substituted by Rajasthan Act 26 of 1976, dated 17-4-1976, w.e.f. 28-2-1976.]

.

76.

Printing and sale of copies of rules and regulations.

(1)

The Chairman shall cause all rules made under section 74 and all regulations made under section 75 and for the time being in force, to be printed and shall cause printed copies thereof to be delivered to any applicant on payment of such fees as may be prescribed by regulations.

(2)

Notice of the fact of copies of rules and regulations being obtainable at the said price and of the place where and the persons from whom the same or obtainable shall be given by the Chairman by advertisement in a local newspaper.

77.

Power of Government to cancel regulations made under section 75.

- The State Government may, after previous publication of its intention, rescind any regulations made by the Trust which it has sanctioned, and thereupon the regulations shall cease to have effect.

Chapter XI

Procedure and Penalties

78.

Stamping signature on notices or bills.

- Every notice or bill which is required under this Act to bear the signature of the Chairman or of any other Trustee or of any officer or servant of the Trust shall be deemed to be properly signed if it bears a facsimile of the signature of the Chairman or of such other Trustee or of such officer or servant, as the case may be stamped thereupon.

79.

Public notice how to be made known.

- Every public notice given under this act shall be in writing over the signature of any officer of the Trust authorised in this behalf and shall be widely made known in the locality to be affected thereby by affixing copies thereof in conspicuous public places within the said locality, or by publishing the same by beat of drum or by advertisement in local newspaper or by any two more of these means, and by any other means that the Trust may think fit.

80.

Service of notices, etc.

(1)

All notices, orders and other documents required by this Act or any rule or regulation made thereunder to be served upon any person shall, have as otherwise provided in this Act or such rule or regulation, be deemed to be duly served-

(a)

where the person to be served is a company, if the document, is addressed to the secretary of the company at its registered office or at its principal office or place of business and is either-

(i)

sent by registered post, or

(ii)

delivered at the registered office or at the principal office or place of business of the company;

(b)

where the person to be served is a partnership, if the document is addressed to the partnership at its principal place of business, identifying it by the name or style under which its business is carried on, and is either-

(i)

sent by registered post, or

(ii)

delivered at the said place of business;

(c)

where the person to be served is a public body or a corporation or society or other body, if the document is addressed to the secretary, treasurer or other head officer of that body, corporation or society at its principal office, and is either-

(i)

sent by registered post, or

(ii)

delivered at that office;

(d)

in any other case, if the document is addressed to the person to be served and-

(i)

is given or tendered to him; or

(ii)

if such person cannot be found, is affixed on some conspicuous part of his last known place of residence or business, if within the State or is given or tendered to some adult member of his family or is affixed on some conspicuous part of the land or building to which it relates, or

(iii)

is sent by registered post to that person.

(2)

Any document which is required or authorised to be served on the owner or occupier of any land or building may be addressed to "the owner" or "the occupier", as the case may be, of that land or building naming that land or building, without further name or description, and shall be deemed to be duly served-

(a)

if the document so addressed is sent or delivered in accordance with clause (d) of sub-section (1); or

(b)

if the document so addressed or a copy thereof so addressed, is delivered to some person on the land or building or where there is no person on the land or building to whom it can be delivered, is affixed to some conspicuous part of the land or building.

(3)

Where a document is served on a partnership in accordance with this section, the document shall be deemed to be served on each partner.

(4)

For the purpose of enabling any document to be served on the owner of any property, the Trust may, by notice in writing, require the occupier, if any, of the property to state the name and address of the owner thereof.

(5)

Where the person on whom a document is to be served is a minor, the service upon his guardian or any adult member of his family shall be deemed to be service upon the minor.

(6)

A servant is not a member of the family within the meaning of this section.

81.

Disobedience to Act or to notice.

- Where, under this Act or a notice given thereunder, the public or any person is required to do or to refrain from doing anything, a person who fails to comply with such requisition, shall, if such failure is not an offence punishable under any other section, be liable, on conviction by a Magistrate to a fine not exceeding live hundred rupees for every such failure and, in the case of a continuing breach to a further fine which may extend to five rupees for every day after the date of the first conviction during which the offender is proved to have persisted in the breach.

82.

Powers to Trust to execute works on failure to comply with notice.

- If a notice has been given under this Act to a person requiring him to execute a work in respect of any property, movable or immovable, public or private, or to private or do or refrain from doing anything within a time specified in the notice, and in such person fails to comply with such notice, then the Trust may cause such work to be executed or such thing to be provided or done, and may recover all expenses incurred by it on such account from the said person in the manner provided in the Municipal law for the time being in force for the recovery of municipal claims.

83.

Liability of occupier to pay in default of owner.

(1)

If the person to whom the notice mentioned in section 82 has been given is the owner of the property in respect of which it is given, the Trust may, whether any action or other proceeding has been brought or taken against such owner or not require the person, if any, who occupies such property or a part thereof under such owner, to pay to the Trust instead of to the owner, the rent payable by him in respect of such property, as it falls due, up to the amount recoverable from the owner under section 82; and any such payment made by the occupier to the Trust shall be deemed to have been made to the owner of the property.

(2)

For the purpose of deciding whether action should be taken under sub-section (1) the Trust may require an occupier of property to furnish information as to the sum payable by him as rent on account of such property and as to the name and address of the person to whom it is payable and if the occupier refuses to furnish such information he shall be liable for the whole of the expenses as if he were the owner.

(3)

All moneys recoverable by the Trust under this section shall be recoverable in the manner provided in the Municipal law for the time being in force for the recovery of municipal claims.

84.

Right of occupier to execute works in default of owner.

- Whenever default is made by the owner of a building or land in the execution of a work required under this Act to be executed by him, the occupier of such building or land may, with the approval of the Trust, cause such work to be

executed, and the expense thereof shall, in the absence of any contract to the contrary, be paid to him by the owner or the amount may be deducted out of the rent from time to time becoming due from him to such owner.

85.

Procedure upon opposition to execution by occupier.

(1)

If, after receiving information of the intention of the owner of any building or land to take any action in respect thereof in compliance with a notice issued under this Act, the occupier refuses to allow such owner to take such action, the owner may apply to a Magistrate of the first class.

(2)

The Magistrate upon proof of such refusal may make an order in writing requiring the occupier to allow the owner to execute all such works, with respect to such building or land, as may be necessary for compliance with the notice, and may also, if he thinks fit, order the occupier to pay to the owner the costs relating to such application or order.

(3)

If, after the expiration of eight days from the date of the Magistrate's order, the occupier continues to refuse to allow the owner to execute such work, the occupier shall be liable, upon conviction, to a fine which may extend to twenty-five rupees for every day during which he has so continued to refuse.

(4)

Every owner, during the continuance of such refusal, shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such work.

86.

Recovery of cost of work by the occupier.

- When the occupier of a building or land has, in compliance with a notice given under this Act, executed a work for which the owner of such building or land is responsible either in pursuance of the contract or tenancy or by law, he shall be entitled to recover from the owner, by deduction from the rent payable by him or otherwise, the reasonable cost of such work.

87.

Relief to agents and Trustees.

(1)

When a person, by reason of his receiving or being entitled to receive, the rent of immovable property, as trustee or agent of a person or society would, under this Act, be bound to discharge an obligation imposed by this Act on the owner of the property and for the discharge of which money is required, he shall not be bound, to discharge the obligation unless he has, or but for his own improper act or default, might have had, in his hands, funds belonging to the owner sufficient for the purpose.

(2)

When an agent or trustee has claimed and established his right to relief under this section, the trust may give him notice to apply to the discharge of such obligation as aforesaid the first moneys which come to his hands on behalf, or for the use, of the owner, and, should he fail to comply with such notice, he shall be deemed to be personally liable to discharge such obligation.

88.

Application of provisions relating to recovery of municipal claims.

- Whenever in this Act or in any municipal law for the time being in force made applicable by section 47 of this Act, it is provided that any sum shall be recoverable in the manner provided for the recovery of municipal claims, then, in applying those provisions, all references to the Municipal Board shall be construed as referring to the trust and all references to the Municipal office, a Municipal officer or the Municipal Fund shall be construed as referring to the office of the trust, to an officer of the trust and the funds of the trust respectively.

89.

Penalty for removing fence etc. in street.

- If any person without lawful authority,-

(a)

removes any fence, or any timber used for propping or supporting any building, wall or other thing, or extinguishes any light set up at any place; where the surface of street or other ground has been opened or broken up by the Trust for the

purpose of carrying out any work, or

(b)

infringes any order given or removes any bar, chain or post fixed by the trust for the purpose of closing any street to traffic, he shall be punishable with fine which may extend to fifty rupees.

89A.

[Penalty for improvements in contravention of the Act.

[Inserted by Rajasthan Act 26 of 1976. dated 17-4-1976, w.e.f. 28-2-1976.]

(1)

Any person who whether at his own instance or at the instance of any other person, or any department of Government, undertakes or carries out any improvement of any land in any urban area, in contravention of the provisions of sub-section (1) of section 72 or in contravention of any condition subject to which permission for undertaking or carrying on any improvement has been granted under section 73, shall be, punishable with fine which may extend to five thousand rupees and in the case of a continuing offence, with further fine which may extend to one hundred rupees for every day during which such offence continues after conviction for the first commission of the offence.

(2)

Any person who uses any land or building in contravention of sub-section (2) of section 72, or in contravention of the terms and conditions prescribed by regulations under the proviso to that subsection, shall be punishable with fine which may extend to two thousand rupees.]

90.

Power to prevent or demolish building.

- If any person without the permission of the Trust erects, adds to or alters any building or wall so as to make the same project beyond the street alignment or building line shown in any plan finally adopted by the Trust, [x x x]

[Omitted by Rajasthan Act 26 of 1976. dated 17-4-1976, w.e.f. 28-2-1976.]

the Trust may, by a written notice-

(a)

direct that the erection, alteration or addition be stopped, and

(b)

require such building or wall to be altered or demolished, as it may deem necessary.

91.

Penalty for non-compliance with notice under section 90.

- If any person after due notice given under section 90 does not stop erection, alteration or addition, or does not demolish or alter any building or wall he shall be punishable with fine which may extend to five hundred rupees, or with simple imprisonment, for a period of six months or with both and the said unauthorised construction shall be demolished or altered by the order of the Magistrate dealing with the case if so requested by the Trust.

91A.

[Order of demolition of buildings etc.

[Inserted by Rajasthan Act 26 of 1976, dated 17-4-1976. w.e.f. 28-2-1976.]

(1)

Where the erection of any building in any urban area has been commenced or is being carried on. or has been completed in contravention of the master plan or of any scheme sanctioned and notified by the State Government or of the sanction of the Trust under sub- section (1) of section 72 or without the permission obtained under section 73, or in contravention of any rules or conditions subject to which such permission has been granted, the Trust may, in addition to any prosecution that may be instituted under this Act, make an order directing that such erection shall be demolished by the owner thereof [within such period not exceeding one month] as may be specified in the order and on the failure of the owner to comply with the order, [the Trust may itself]

[Substituted by Rajasthan Act 9 of 1978, dated 26-10-1978, w.e.f. 15-6-1978.]

cause the erection to be demolished and the expenses of such demolition shall be recoverable from the owner as arrears of land revenue:]

Provided that no such order shall be made unless the owner has been given a reasonable opportunity to show cause why the order should not be made.

(2)

Any person aggrieved by an order under sub-section (1) may appeal to the [Divisional Commissioner] [Substituted by Rajasthan Act 18 of 1991, dated 19-10-1991, w.e.f. 27-8-1991.] against the order within 30 days from the date of the order of the Trust and the [Divisional Commissioner] [Substituted by Rajasthan Act 18 of 1991. dated 19-10-1991. w.e.f. 27-8-1991.] may after hearing the parties to the appeal either dismiss the appeal or may reverse or vary the whole or any part of the order.

(3)

The decision of the [Divisional Commissioner] [Substituted by Rajasthan Act 18 of 1991. dated 19-10-1991. w.e.f. 27-8-1991.]

in the appeal shall be final and shall not be questioned in any court:

[Provided that where any officer of the Trust threatens to remove or demolish, or otherwise cause any injury to, an erection, the person aggrieved may file an application for the adjudication of the dispute to the Divisional Commissioner within thirty days of the communication or knowledge of such threat. The decision of the Divisional Commissioner shall be final.]

[Inserted by Rajasthan Act 18 of 1991. dated 19-10-1991, w.e.f. 27-8-1991.]

91B.

Power to stop improper use of land or buildings in urban areas.

(1)

Whoever uses any land or building in any urban area in contravention of the provisions of sub-section (2) of section 72, any officer of the Trust empowered in this behalf may, in addition to any prosecution that may be instituted under the Act for such improper use, make an order requiring such person to stop such improper use immediately.

(2)

Where such improper use is not discontinued in pursuance of the requisition under sub-section (1), the Trust or the officer empowered in this behalf may require any police officer to stop such improper use as may be specified in the requisition to the police and to remove from such land or building, any person, other than the owner, making the improper use, and such police officer shall comply with the requisition.

91C.

Power to stop building operations.

(1)

Where the erection of any building in an urban area has been commenced in contravention of the master plan or any scheme sanctioned and notified by the State Government or of the general approval of the Trust under sub-section (1) of section 72 obtained under section 73, or without the permission or in contravention of any condition subject to which such permission, approval or sanction has been granted but such erection has not been completed, any officer of the Trust empowered in this behalf may, in addition to any prosecution that may be instituted under this Act, make an order requiring the building operations in relation to such erection to be discontinued on and from the date of service of the order.

(2)

Where such building operations are not discontinued in pursuance of the requisition under sub-section (1), the Trust or the Officer empowered in this behalf may required by Police Officer to remove the person by whom the erection of the building has been commenced and all his assistants and workmen from the place of the building within such time as may be specified in the requisition and such Police Officer shall comply with the requisition accordingly.

(3)

After a requisition under sub-section (2) has been complied with, the officer empowered in this behalf, may depute by a written order a Police Officer or an Officer or employee of the Trust to watch the place in order to ensure that the erection of the building referred to in sub-section (1) is not continued.

(4)

Any person failing to comply with an order under sub-section (1) shall be punishable with fine which may extend to two hundred rupees for every day during which the non-compliance continues after the service of the order.

(5)

No compensation shall be claimed by any person for any damage which he may sustain in consequences of the discontinuation of the erection of any building.

91D.

Offences by Companies.

(1)

If the person committing an offence under this Act, is a company, every person, who was responsible to the company as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act if he proves that the offence was committed without his knowledge or that he exercised all due diligence in preventing the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1) when an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of or is attributable to any neglect on the part of any Director, Manager, Secretary or other Officer of the Company, such Director, Manager, Secretary or other Officer shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section-

(a)

'Company' means a body corporate and includes a firm or other association of individuals, and

(b)

'director' in relation to a firm means a partner in the firm.

91E.

Fines payable to the Trust.

- All fines realised in connection with prosecution under this Act shall be paid to the Trust concerned.

91F.

Defaults in providing amenities.

(1)

If the Trust after holding a local enquiry or upon report from any of its officers or other information in its possession is satisfied that the owner of any land in the urban area under its control has failed to provide any amenity in relation to the land, which in the opinion of the Trust ought to be provided, or to carry out any improvement of the land for which permission has been obtained under this Act, it may serve upon the owner a notice requiring him to provide the amenity or carry out the improvement within such time as may be specified in the notice.

(2)

If any such amenity is not provided or any such improvement is not carried out within the time specified in the notice, then the Trust may itself provide the amenity or carry out the improvement or have it provided or carried out through such agency as it deems fit:

Provided that before taking any action under this sub-section the Trust shall afford reasonable opportunity to the owner of the land to show cause as to why such action should not be taken.

(3)

All expenses incurred by the Trust or the agency employed by it in providing the amenity or carrying out the improvement together with interest at such rate as State Government may by order fix, from the date on which a demand for the expenses is made till their payment may be recovered by the Trust from the owner as arrears of land revenue.

91G.

Power to require local authority to assume responsibility in certain cases.

- Where any urban area has been improved by the Trust, the Trust may require the municipality in whose local limits the area so improved is situated to assume responsibility for the maintenance of the amenities which have been provided by the Trust or the amenities which have not been provided by the Trust but which in its opinion should be provided in the area on terms and conditions agreed upon between the Trust and such municipality, and where such terms and conditions cannot be so agreed upon, on terms and conditions settled by the State Government in consultation with the municipality on a reference of the matter to the State Government by the Trust.]

92.

Penalty for obstructing contractor or removing mark.

- If any person-

(a)

obstructs or molests any person with whom the Trust has entered into of contract in the performance or execution by such person of his duty or anything which he is empowered or required to do under this Act, or

(b)

removes any mark set up for the purpose of indicating any level or direction necessary to the execution of works authorised under this Act,

he shall be punishable with fine which may extend to [five hundred rupees]

[Substituted by Rajasthan Act 18 of 1991. dated 19-10-1991, w.e.f. 27-8-1991.]

or with imprisonment for a term which may extend to two months.

[92A. Encroachment or obstruction upon public land. - (1) Whoever-

(a)

makes or continues to make any encroachment in any land or space not being private property, whether such land or space belongs to or vests in the Trust or not, except steps over drain in any public street, or

(b)

having made such encroachment before coming into force of the Rajasthan Urban Improvement (Second Amendment) Act, 1991, fails to remove such encroachment within fifteen days from the date of service of a notice in writing calling upon him to do so by the Trust,

shall, on conviction, be punished with simple imprisonment which shall not be less than one month but which may extend to three years and with fine which may extend to twenty thousand rupees:

Provided that the court may for any adequate or special reason to be mentioned in the judgement impose a sentence of imprisonment for a term of less than one month.

(2)

Whoever-

(a)

makes or continues to make any obstruction in any land or space not being private property, whether such land or space belongs to or vests in the Trust or not, except steps over drain in any public street; or

(b)

having made such obstruction before coming into force of the Rajasthan Urban Improvement (Second Amendment) Act, 1991, fails to remove such obstruction within fifteen days from the date of service of a notice in writing calling upon him to do so by the Trust,

shall, on conviction, be punished with simple imprisonment which may extend to one month or with fine which may extend to two thousand rupees or with both.

(3)

The Trust or any officer authorised by it in this behalf shall have power to remove any such obstruction or encroachment and the expenses of such removal shall be paid by the person who has caused the said obstruction or encroachment.

(4)

Whoever not being duly authorised in that behalf removes earth, sand or other material from any land or space as aforesaid, shall be punished on conviction with imprisonment which may extend to six months or with fine which may extend to ten thousand rupees or with both.

(5)

Notwithstanding anything contained in the foregoing provisions, the Trust or the officer authorised by it in this behalf shall, in addition to the action taken as provided in this section, also have power to seize or attach any property found on the land or space referred to in this section or, as the case may be, attached to such land or space or permanently fastened to anything attached to such land or space.

(6)

Where any property is seized or attached by an officer authorised by the Trust, he shall immediately make a report of such seizure or attachment to the Trust.

(7)

The Trust may make such orders as it thinks fit for the proper custody of the property seized or attached, pending the

conclusion of confiscation proceedings, and, if the property is subject to speedy and natural decay, or it is otherwise expedient so to do, the Trust may order it to be sold or otherwise disposed of.

(8)

Where any property is sold, as aforesaid, the sale proceed thereof after deduction of the expenses of any sale or other incidental expenses relating thereto, shall-

(a)

Where no order of Confiscation is ultimately passed by the Trust; or

(b)

where an order passed in appeal so requires,

be paid to the owner thereof or the person from whom it is seized.

(9)

Where any property is seized or attached under sub-section (5), the Trust may order confiscation of such property.

(10)

No order for confiscating a property shall be made under sub-section (9) unless the owner of such property or the person from whom it is seized or attached is given-

(a)

a notice in writing, informing him of the grounds on which it is proposed to confiscate the property;

(b)

an opportunity of making a representation in writing within such reasonable time as may be specified in the notice against the grounds of confiscation; and

(c)

a reasonable opportunity of being heard in the matter.

(11)

The order of any confiscation under this section shall not prevent the infliction of any punishment to which the person affected thereby is liable under the Act.

(12)

Any person aggrieved by an order made under sub-section (7) or sub-section (9) may, within one month from the date of the communication to him of such order, appeal against it to the District Judge of the District in which such property is seized or attached.

(13)

On such appeal the District Judge may, after giving an opportunity to the appellant and the respondent to be heard, direct the order to be stayed pending disposal of the appeal, or may modify, alter or annul the order and make any further orders that may be just.

(14)

Whenever any property is seized or attached pending confiscation under this section the Trust or the District Judge shall have, and notwithstanding anything to the contrary contained in any other law for the time being in force, any other court, tribunal or other authority shall not have, jurisdiction to make orders with regard to the possession, delivery, disposal, release or distribution of such property.

(15)

Where any person is prosecuted of an offence under subsection (1) or sub-section (2), the burden of proving that he has not committed the offence shall be on him.

(16)

Whoever, being an employee of the Trust, specifically entrusted by an order of the Trust in writing with the duty to stop or prevent the encroachment or obstruction punishable under this section, wilfully or knowingly neglects or deliberately omits to stop or prevent such encroachment or obstruction, shall, on conviction, be punished with simple imprisonment for a term which may extend to one month or with fine which may extend to one thousand rupees or with both:

Provided that no court shall take cognizance against such employee for the offence punishable under this sub-section except with the previous sanction of the Trust.

(17)

No investigation of an offence under this section shall be made by an officer below the rank of a Deputy Superintendent of Police.]

[Section 92-A, Inserted by Rajasthan Act 18 of 1991. dated 19-10-1991. w.e.f. 27-8-1991.]

Chapter XII

Supplemental Provisions

93.

Trustees, etc. deemed to be public servants.

- Every Trustee and every officer and servant of the Trust shall be deemed to be a public servant within the meaning of section 21 of the Indian Penal Code.

[93A. Liability of Trustees and officers and servants of the Trust. - Every Trustee, officer or servant of the Trust shall be liable for the mis-application of any money or other property owned by or vested in or placed at the disposal of the Trust to which he has been a party of for any loss or waste of such money or property which has been caused or facilitated by his misconduct. The chairman, secretary or other officer or person to whom executive powers are conferred by or under this Act shall be liable for such loss, waste or misapplication, if it is a direct consequence of his neglect or has been caused or facilitated by his misconduct.]

[Inserted by Rajasthan Act 3 of 1963, dated 29-3-1963.]

94.

Contribution by Trust towards leave allowance and pensions of Government servants.

- The Trust shall be liable to pay such contributions for the leave allowance and pension of every Government servant employed as an officer or servant of the Trust as may be required, by the conditions of his service under the Government, to be paid by him or on his behalf.

95.

Authority for prosecutions.

- Unless otherwise expressly provided, no court shall take cognizance of any offence punishable under this Act, except on the complaint of or upon information received from the Trust or some person authorised by the Trust by general or special order in this behalf.

[95A. Cognizance of offences. - No court other than that of a Magistrate of the first class shall try any offence against this Act..]

[Inserted by Rajasthan Act 3 of 1963, dated 29-3-1963.]

[96. Powers of the Trust as to legal matters. - (1) The Trust may-

(a)

institute, defend or withdraw from any legal proceeding;

(b)

compound any offence against this Act;

(c)

admit, compromise or withdraw any claim made in any legal proceeding or otherwise; and

(d)

obtain such legal advice as may from time to time be considered necessary or expedient, for any of the purposes under this Act or for securing the lawful exercise or discharge of any power or duty vested in or imposed upon the Trust or any officer or servant of the Trust.

(2)

The Trust may delegate to any of its committees the power conferred on it under sub-section (1) to be exercised by such committees subject to such conditions and restrictions as may be prescribed.]

[Substituted by Rajasthan Act 26 of 1976. dated 17-4-1976, w.e.f. 28-2-1976.]

97.

Indemnity of Trust, etc.

- No suit, prosecution or other legal proceeding shall be maintainable against the Trust, or any Trustee, or any officer or servant of the Trust, or any person acting under the direction of the Trust or the Chairman, or any officer or servant of the Trust in respect of anything lawfully and in good faith and with due care and attention done under this Act.

98.

Notice of suit against Trust, etc.

(1)

No suit shall be instituted against the Trust or any Trustee, or any person associated with the Trust under section 19 or

any member of a Committee appointed under section 20 or any officer or servant of the Trust, or any person acting under the direction of the Trust or of the Chairman or of any officer or servant of the Trust in respect of an act purporting to be done under this Act, until the expiration of two months next after notice in writing has been in the case of a Trust, left at its office and, in any other case, delivered to or left at the office or place, of the abode of the person to be sued, explicitly stating the cause of action, the nature of the relief sought, the amount of compensation claimed and the name and place of abode of the intending plaintiff, and the plaint shall contain a statement that such notice has been so delivered or left.

(2)

If the Trust or other person referred to in sub-section (1) shall, before the action is commenced have tendered sufficient amends to the plaintiff, the plaintiff shall not recover any sum in excess of the amount so tendered and shall also pay all costs incurred by the defendant after such tender.

(3)

No action such as is described in sub-section (1) shall, unless it is an action for the recovery of immovable property or of a declaration of title thereon, be commenced otherwise than within six months next after the accrual of the cause of action therefor.

(4)

Nothing in sub-section (1) shall be construed to apply to a suit wherein the only relief claimed is an injunction of which the object would be defeated by the giving of the notice of the postponement of the commencement of the suit or proceeding.

99.

Mode of proof of Trust records.

- A copy of any receipt, application, plan, notice, order, entry in a register or other document in the possession of the Trust shall, if duly certified by the legal keeper thereof or, the secretary of the Trust or any person authorised by the Trust in this behalf be received as prama facie evidence of the entry or document and shall be admitted as evidence of the matters and transaction therein recorded in every case where, and to the same extent as, the original entry or document would, if produced, have been admissible to prove such matter.

100.

Restriction on the summoning of Trust servants to produce documents.

- No trustee or officer or servant of the Trust shall in any legal proceeding to which the Trust is not a party be required to produce any register or document the contents of which can be proved under the proceedings section by a certified copy, or to appear as a witness to prove the matters and transaction recorded therein unless by order of the court made for special cause.

101.

Validation of acts and proceedings.

(1)

No act done or proceeding taken under this Act shall be questioned on the ground merely of-

(a)

the existence of any vacancy in, or any defect in the constitution of, the Trust or any committee; or

(b)

any person having ceased to be a trustee; or

(c)

any trustee, or any person associated with the Trust under section 19 or any other member of a committee appointed under this Act having voted or taken part in any proceeding in contravention of section 23; or

(d)

the failure to serve a notice on any person, where no substantial injustice has resulted from such failure; or

(e)

any omission, defect or irregularity not affecting the merits of the case.

(2)

Every meeting of the Trust shall be taken to have been duly convened to be free from all defect, and irregularity.

102.

Power of entry.

(1)

The Chairman or any other person who may be authorised in that behalf by the State Government may, with or without assistants or workman, enter into or upon any land in order-

(a)

to make any inspection, survey, measurement, valuation or inquiry,

(b)

to take levels,

(c)

to dig or bore into the sub-soil,

(d)

to set out boundaries and intended lines of work,

(e)

to mark such levels, boundaries and lines by marks and cutting trenches, or

(f)

to do any other thing,

whenever it is necessary to do so far any of the purposes of this Act or any rule made or scheme sanctioned thereunder or any scheme which the Trust intends to frame thereunder;

Provided as follows-

(a)

except when it is otherwise specially provided by rule, no such entry shall be made between sunset and sunrise;

(b)

except when it is otherwise specially provided by rule, no building which is used as a human dwelling shall be so entered, unless with the consent of the occupier thereof, without giving the said occupier at least twenty-four hours previous written notice of the intention to make such entry;

(c)

sufficient notice shall in every instance be given, even when any premises may otherwise be entered without notice, to enable the inmates of any apartment appropriated to females to remove the some part, of the premises where their privacy need not be disturbed;

(d)

due regard shall always be had, so far as may be compatible with the exigencies of the purposes for which the entry is made, to the social and religious usages of the occupants of the premises entered.

(2)

Whenever the Chairman enters into or upon any land in pursuance of sub-section (1) he shall at time of such entry pay or tender payment for all necessary damages to be done as aforesaid, and, in case of dispute as to the sufficiency of the amount so paid or tendered, he shall at once refer the dispute to the Trust whose decision shall be final.

(3)

It shall be lawful for any person authorised under sub- section (1) to make an entry for the purpose of inspection or search to open or cause to be opened a door, gate or other barrier-

(a)

if he considers the opening thereof necessary for the purpose of such entry, inspection or search, and

(b)

if the owner or occupier is absent or, being present, refuses to open such door, gate or barrier.

103.

General power of Trust to pay compensation.

- If any case not otherwise expressly provided for in this Act, the Trust may pay reasonable compensation to any person who sustains damage by reason of the exercise of any of the powers vested under this Act in the Trust or the Chairman or any officer or servant of the Trust.

104.

Compensation to be paid by offenders for damages caused by them.

(1)

If, on account of any act or omission, any person has been convicted of an offence under this Act, and by reason of such

act or omission, damage has occurred to any property of the Trust., compensation shall be paid by the said person for the said damage, notwithstanding any punishment to which he may have been sentenced for the said offence.

(2)

In the event of dispute, the amount of compensation payable by the said person shall be determined by the Magistrate before whom he was convicted of the said offence.

(3)

If the amount of any compensation due under this section be not paid, the same shall be recovered under a warrant from the said Magistrate as if it were a fine inflicted by him on the person liable therefor.

105.

Ultimate dissolution of Trust, and transfer of its assets and liabilities to the Municipal Board.

(1)

When all schemes sanctioned under this Act have been executed or have been so far executed as to render the continued existence of the Trust, in the opinion of the State Government, unnecessary, the State Government may by notification declare that the Trust shall be dissolved from such date as may be specified in this behalf in such notification, and the Trust shall be deemed to be dissolved accordingly.

(2)

From the said date-

(a)

all properties, funds and dues which are vested in or realisable by the Trust shall vest in and be realisable by the Municipal Board;

(b)

all liabilities which are enforceable against the Trust shall be enforceable against the Municipal Board;

(c)

for the purpose of completing the execution of any scheme sanctioned under this Act, which has not been fully executed by the Trust, and of realising properties, funds and dues referred to in clause (a) the functions of the Trust under this Act shall be discharged by the Municipal Board as if it were the Trust under this Act; and

(d)

the Municipal Board shall keep separate accounts of all moneys respectively received and expended by it under this Act, until all loans raised hereunder have been repaid and until all other liabilities referred to in clause (b) have been duly met.

106.

Repeal and savings.

- [(1)]

[Renumbered by Rajasthan Act 6 of 1962, dated 21-4-1962, w.e.f. 30-12-1961.]

The Alwar State Town and Village Improvement Act, 1947, the City of Kota Improvement Act, 1946 and all other corresponding laws or rules, in force in any part of the State shall stand repealed in any area for which a Trust is constituted under this Act or for which a master plan is ordered to be prepared thereunder on and from the date on which such Trust is constituted or such order is made:

Provided that such repeal shall not in anyway affect anything done or action taken under the Act, law or rule so repealed, previously to such coming into force.

(2)

[As from the date of the establishment of an Improvement Trust under this Act for any area within the State, hereinafter referred to as such establishment-

(a)

the former Trust, if any, functioning in that area shall stand dissolved;

(b)

all lands and buildings (together with all interests of whatsoever nature and kind therein) situated in such area and vested or vesting in such former Trust immediately before such establishment shall pass on to and vest in the Trust so established;

(c)

all stores, articles and other movable properties belonging to such former Trust immediately before such establishment

and utilised for or in connection with such area shall pass on to and vest in the Trust so established;

(d)

all appointments, notifications, orders, schemes, rules, forms, notices or bye-laws made or issued or any licence or permission granted by such former Trust immediately before such establishment in or in connection with such area shall in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made, issued or granted under the provisions of this Act unless and until they are superseded by any appointment, notification, order, scheme, rule, form, notice or bye-law made or issued or any licence or permission granted under the said provisions;

(e)

notwithstanding anything contained in this Act, the validity of any declaration, application, publication, notification, appointment, order, proposal, award, proceeding, consultation, inquiry, certification, sanction, agreement, notice, approval, decision, dispute, draft or final scheme or act made, held, issued, entered into, given, taken, decided, drawn up or done, or purporting to have been made, held, issued, entered into, given, taken, decided, drawn up or done, as the case may be, before such establishment in connection with such schemes shall not be liable to be called in question in any court or before any tribunal or authority;

(f)

all debts, obligations and liabilities incurred, all contracts entered into and all matters and things engaged to be done by, with or for the former Trust immediately before such establishment for or in connection with such area shall be deemed to have been incurred, entered into and engaged to be done by, with or for the Trust so established;

(g)

all assessments, valuations, measurements or divisions made by the former Trust immediately before such establishment in or in connection with such area shall, in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made under the provisions of this Act unless and until they are superseded by any assessment, valuation, measurement or division made by the Trust so established under the said provisions;

(h)

all rates, taxes, fees, rents and other sums of money due to the former Trust in, or in relation to, such area immediately before such establishment shall be deemed to be due to the Trust so established;

(i)

all rates, fees, rents and other charges leviable in, or in relation to, such area, shall unless and until they are varied by the Trust so established, continue to be levied at the same rate at which they were being levied by the former Trust immediately before such establishment;

(j)

all suits, prosecutions and other legal proceedings instituted or which might have been instituted by or against such former Trust immediately before such establishment for any matter in relation to such area may be continued or instituted by or against the Trust so established; and

(k)

every officer or other employee serving under such former Trust immediately before such establishment in connection with such area shall be required to give an option to become an officer or employee of the Trust so established, with such designation as the Chairman may determine and hold office by the same tenure and at the same remuneration and on the same terms and conditions of service as he would have held the same if the Trust had not been established and shall continue to do so unless and until such tenure, remuneration and terms and conditions are duly altered by the Trust so established:

Provided that the tenure, remuneration and terms and conditions of service of any such officer or other employee shall not be altered to his disadvantage.]

[Inserted by Rajasthan Act 6 of 1962, dated 21-4-1962, w.e.f. 30-12-1961.]

Notifications Under

The Rajasthan Urban Improvement Act, 1959

Section 2

Directorate of Social Welfare, Rajasthan Jaipur

List of de-notified Tribes Nomadic Tribes and Semi Nomadic Tribes as approved vide Government in Social Welfare

Department vide Government Order No. F. 1(F)(2) SW/63, dated 24-2-1964.

De-notified Tribes

1. Baori.
2. Kanjar.
3. Sansi.
4. Bagri (Bawaria).
5. Mogia.
6. Nut.
7. Naik.
8. Multani.
9. Bhat.

Nomadic and Semi Nomadic Tribes

(A)

Nomadic Tribes

1. Baldias (Banjaras)
2. Pardhis
3. Dorabaris
4. Gadia Lohars
5. Iranis
6. Jagi Kalbelia
7. Jogi Kanphata
8. Dhurpalta (Kulphaltas)
9. Shikligar
10. Ghisadia

(B)

Semi Nomadic Tribes

1. Sarangiwala-Bhoas
2. Rebaris
3. Ratha
4. Mangalias
5. Bhayas
6. Kanhais
7. Janglu
8. Jalukhus
9. Jhangs
10. Sindlus
11. Jogis (Other than those included in Nomadic Tribes)

(i)

Girinaths

(ii)

Ajaipals

(iii)

Agamnaths

(iv)

Namantha

(v)

Janadhars

(vi)

Masanis

12. Ramaswamies
13. Bharaddi-Jhadhavs

Directorate of Social Welfare, Rajasthan, Jaipur

List of Other Backward Classes in Rajasthan (As per the Scheduled Tribes orders (Amendment) Act, 1956 (63 of 1956)).

Other Backward Classes

Throughout the State except Ajmer district:-

1. Banjare.
2. Baoril.
3. Badera.
4. Bagaria.
5. Bhat.
6. Bhoi (Sargarvanshi Mali).
7. Cheeta.
8. Chamta.
9. Dhakot.
10. Damami.
11. Daroga.
12. Dhandi.
13. Dhankas.
14. Dhobi.
15. Dholi.
16. Gaderia.
17. Gadia Lohar.
18. Ghanacha.
19. Ghanchi.
20. Hazuree.
21. Hela.
22. Jogi.
23. Julaba.
24. Kahar.
25. Kalal.
26. Kangi.
27. Kanvi.
28. Khant.
29. Kharola.
30. Kumbhar.
31. Labana.
32. Lakhera.
33. Lohar.
34. Merat and Mer.
35. Mehra.
36. Meha Brahmin.
37. Miras.
38. Merasi.
39. Mogia.
40. Nagarches.
41. Nai.
42. Naik.
43. Nairia.
44. Oad (Beldar).
45. Patwa (Phadal).
46. Pinjara.
47. Rai.

48. Raona Rajput.
49. Rawat.
50. Rehbari.
51. Sad.
52. Sonsi (Sehar).
53. Satiya (Sindhis).
- 54.
- Siklighar.
- 55.
- Sirkiwala.
- 56.
- Teli.
- 57.
- Thatera.

The persons belonging to the undermentioned castes and tribes are members of the Scheduled Castes and the Scheduled Tribes in Rajasthan Notification No. FB/ I/SW/65-66/72-605-23, dated 21-7-65 issued by the Department of Social Welfare Government of Rajasthan, Jaipur.

List of Scheduled Castes

1. Throughout the State except Ajmer District, Abu Area of Sirohi District and Sunel Area of Jhalawar District.

1. Adi Dharmi.
2. Aheri.
3. Badji.
4. Bagri.
5. Bairwa or Borwa.
6. Bajgar.
7. Balai.
8. Bansphor.
9. Bagri, Vagri or Birgi.
10. Bawaria.
11. Bedia or Beria.
12. Bhand.
13. Bhangi.
14. Bidakia.
15. Bola.
16. Chamar, Bhambhi, Jataia, Mochi, Raiger or Ramadasia.
17. Chanal.
18. Chura
19. Dabgar.
20. Dhankia.
21. Dheda.
22. Dome.
23. Gangia.
24. Garancha Mehtar or Ganohar
25. Garo, Gaura or Gurda.
26. Gavarla
27. Godhi.
28. Jingar.
29. Kalbelia.
30. Kamad or Kamadia
31. Kanjar.
32. Kapadia Sansi

33. Khangar.
34. Khatik.
35. Kali or Kori.
36. Kooch Banh,
37. Koria.
38. Kunjar.
39. Madari or Bazigar.
40. Majhobi.
41. Megh or Meghwal.
42. Mehar.
43. Mehtar.
44. Nat.
45. Pasi.
46. Rawal.
47. Salvi.
48. Sansi.
49. Santial.
50. Sarbhangi.
51. Sargara.
52. Singhiwala.
53. Thori or Nayyak.
54. Tirggar.
55. Valmiki.

III. In Abu Road Area of Sirohi District

1. Ager.
2. Baked or Bant.
3. Bhambi, Bhambhi, Asdaru, Abodi, Chamadaia, Chamar, Chambhar, Chamgar, Haral-ayya, Khappa, Machigar, Madar, Madig, Telegu, Mochi, Ranigar, Rohidas, Rohit or Samger.
4. Bhangi, Methan, Olgana, Rukhi, Mallana, Halal-khor, Lalbegi, Valmiki, Korar or Zadamalli.
5. Chalvadi.
6. Chenna, Desar or Holaya Dasar.
7. Dhor Kakkayya or Kankayya.
8. Garoda or Garo.
9. Halleer.
10. Halsar Haslar, Hulawvar or Halavar.
11. Holar or Kalhar.
12. Ilelay or Holder.
13. Lingader.
14. Mehar, Taral or Dhegu Megu.
15. Mahyavshi, Dhed, Vankar or Meru Vankar.
16. Mangu Matang, or Mini-madag.
17. Mang, Carudi.
18. Meghval or Menghvar.
19. Mukari.
20. Nadia or Hadi.
21. Pasi.
22. Shenva, Chenva, Sedma or Ravat.
23. Tirgar or Tirbanpa.
24. Turi.

VI. Sunel Tappa Area Jhalawar District

1. Bagri or Bagdi.

2. Balai.
3. Banohada.
4. Barahar or Basod.
5. Barghunda.
6. Bedia.
7. Bhangi or Mettar.
8. Bhanumati.
9. Chamar, Bairwar, Bhami, Jatav.
10. Chidar.
11. Dhanak.
12. Dhed.
13. Dom.
14. Kanjar.
15. Khatik.
16. Koli or Kori.
17. Kotwal.
18. Mahar.
19. Mang or Mang Carodi.
20. Meghwal.
21. Nat, Kalbelia or Sapera.
22. Pasi.
23. Pardhi.
24. Sansi.
25. Zamrai.

List of Schedule Tribes

1. Throughout the State Except Ajmer District, Abu Area or Sirohi District & Sunel Area of Jhalawar District.

1. Bhil.
2. Bhil Mina.
3. Darner, Damariya.
4. Garasia (Excluding Rajput Garasia).
5. Mina.
6. Sehria or Sahariya.

II. In Ajmer District

1. Bhil.
2. Bhil Mina.

III. In Abu Area of Sirohi District

1. Barda.
2. Bavacha or Bomocha.
3. Bhil including Bhil, Garasia, Dholi Bhil, Dungribhil, Dun-gri-Garasia, Mewasi Bhil, Rawal, Bhil, Tadvil Bhil, Bha-galia, Bhilala Pawara, Vasava and Vasav.
4. Ghodara.
5. Dhanka, including Tadvil Tetaria and Valvi.
6. Dhodia.
7. Dubla, including Talavia or Halpati.
8. Gamit or Gamta or Gavit, including Mavchi Padvil, Vasava, Vasave and Valvi.
9. Gond or Raj Gond.
10. Kathori or Kathori, including Dhor Kathodia or Dhar Kathodia and Dhar Kathodi or Son Rotkari.
11. Kokna Kokni, Kukna.
12. Koli Dhor, Tokre Kali, Kolcha or Kolgha.
13. Naikda or Nayaka, including Cholivalo Nayaka, Kapadia Nayaka, Mota-Nayaka & Nana-Nayaka.
14. Pardhi including Advicrinohar and Phanse Pardhi.

15. Patela.

16. Pomta.

17. Rathawa.

18. Varli.

19. Vitolia, Kotwalia or Barodia.

IV. In Sunel Tappa of Jhalawar District

1. Gond.

2. Korku.

3. Seharla.

Section 3

Notification No. F 7 (187) LSG/B/58. dated 14-10-1959. Published in Rajasthan Gazette Extra ordinary, Part IV-C, dated 15-10-1959. -In exercise of the powers conferred by sub-section 3 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

), the Government of Rajasthan hereby directs that, in respect of and for the urban area hereinafter defined and described, a civic survey shall be carried out, and a master plan shall be prepared, by 31-1-1960.

Description of urban area

(i)

All the area bounded by the River Chambal on the West and North and then South along the B B & C. I. Railway line West along the Rangpore Road, thence South along the Western boundary of the Railway colony, then West along the Northern and Western boundary of Umaid Bhawan then along the Darrah Road upto the State Gardens.

(ii)

The Gumanpura and Chota Talab areas (including the Grain Mandi) bounded by the Chhatra Bilas Tank, thence along a line drawn 150 ft. to the East of the Darrah Road upon the Umaid Ganj Road and thence along the Borabas Road and then North along a line parallel to the City Jhalawar Road and 500 ft. West of it and along the North wall upto the South East corner of the Chota Talab and thence West and North along a line West of and parallel to the Road and at distance of 100 ft. to the South and West of the Road, to the Motor Stand and the Ghantaghar Road and the Khasonia Gate.

(iii)

All the land in the North 12' away from the house of Shri Narain Verma going parallel to Kota Jhalawar Road in the South 800 ft. length the turning to the East upto the compound wall of Chatrapura, then turning to the North upto 900 ft. length going the Kansua Road and then again in the East along the Kansua Road 2300 ft. length, and then in the North 1275 ft. length and thence towards West along tire Masjid, Quarry, Oil Mills etc. meeting the starting point near the house of Shri Narain Verma towards Chaoni going parallel towards West 3700 ft. length.

(iv)

All the lands starting from Chambal Rest House and Kishorepura Amarniwas Road Square, going parallel to the Amarniwas Road towards South West 3600 ft. then turning to the East towards Amarniwas Road upto 1200 ft. and then turning towards South upto 2300 ft. and then from there turning to the East upto 299 ft. meeting Dadabari Road in the South of Dadabari Village moving further 600 ft. upto Pacca Chabutra and towards West 725 ft. length South West of Chambal and joining the Chambal Rest house Road at a place from where it was started and turning towards Chambal Rest House Road upto 770 ft.

(v)

All the lands from Railway boundary upto Railway crossing and parallel to the Umaid Ganj Road upto 6750 ft. then to the South East and towards South on Kansua Road upto 1500 ft. from there on to the West 4800 ft. and from there along the North parallel to the Railway line upto crossing of Daknia Talab at a distance of 7550 ft. joining the starting point.

Notification No. F. 1(12)/TP/Gr. 11/72, dated 10-9-1973, Published in Rajasthan Gazette Extra ordinary, Part I(Kha), dated 14-9-1973.-In exercise of the powers conferred under sub-section (2) of Section 3 of the Rajasthan Urban Improvement Act, 1959, the State Government hereby constitute an advisory Council to guide the Chief Town Planner and Architectural Advisor, Rajasthan Jaipur for preparation of Master Plan for Jodhpur-

1. Minister of Town Planning

Chairman member

2. Secretary to the Government Town Planning Department

- "
3. Secretary to the Government Revenue Department
- "
4. Secretary to the Government. Finance Department it
- "
5. Secretary to the Government, Industries Department.
- "
6. Development Commissioner, Rajasthan, Jaipur.
- "
7. Director of Agriculture, Rajasthan, Jaipur.
- "
8. Chief Engineer, (PWD B&R) Rajasthan Jaipur.
- "
9. Chief Engineer, PHED, Rajasthan Jaipur.
- "
10. Chief Engineer, Under Ground Water Board, Jodhpur.
- "
11. Collector, Jodhpur Chairman.
- "
12. Divisional Supt N Rly. Jodhpur.
- "
13. Station Commander, Military Area cantonment, Jodhpur.
- "
- 14.[D.I.G. of R.A.C.] [[Substituted by Notification F. 1(12) TP/Gr. 11/72, dated 24-12-1973, published in Rajasthan Gazette, part IV-C(I), dated 26-12-1973 for the original, words-
'1. Commandant RAC Jodhpur'.]]
- "
15. Officer incharge. Air force Area Aerodrome, Jodhpur.
- "
16. Chairman, Urban Improvement Trust, Jodhpur.
- "
17. President, Municipal Council Jodhpur
- "
18. Shri Amritlal Gahlot, M.L.A. Jodhpur.
- "
19. Shri Ram Singh Bisnoi, M.L.A.
- "
20. Shri Liyakatullah Khan, Bamba Mohalla, Jodhpur.
- "
21. Chief Town Planner & Architectural Advisor Rajasthan,
Jaipur.
Secretary
- 22.[S.P. Jodhpur]
[Added item no. 22 by the Notification No. F. 1(12) TP/Gr. 11/72, dated 24-12-1973, Published in Rajasthan Gazette, Part IV-C(1), dated 26-12-1973.]
- "
23. [The Vice Chancellor, University of Jodhpur.]
[Added by the Notification No. F. 1(12) IP/72, dated 25-5-1974, Published in Rajasthan Gazette, Part I (Kha), dated 30-5-1974, page 31.]
- "
- Notification No. F. 1(11) TP/Gr. 11/72, dated 18-4-1974, Published in Rajasthan Gazette, Extra ordinary, Part I, dated

18-4-1974, page 3.-In exercise of the powers conferred under sub-section (2) of section 3 of the Rajasthan Urban Improvement Act, 1959, the State Government hereby constitute an advisory Council to guide the Chief Town Planner and Architectural Advisor, Rajasthan, Jaipur for preparation of Master Plan for Alwar-

1. Minister for Town Planning.

Chairman

2. Secretary to the Government Town Planning.

Member

3. Secretary to the. Government Finance Department.

"

4. Secretary to the Government Revenue Department.

"

5. Secretary to the Government, Industries Department.

"

6. Development Commissioner, Jaipur.

"

7. Chief Engineer, PWD (Roads) Jaipur.

"

8. Chief Engineer, PWD (B & R) Rajasthan Jaipur.

"

9. Chief Engineer, PHED, Rajasthan Jaipur.

"

10. Collector, Alwar.

"

11. Divisional Superintendent; Western Railway Jaipur.

"

12. Station Commander, Military Area Cantonment Alwar.

"

13. Chairman, Urban Improvement Trust, Alwar.

"

14. President, Municipal Council, Alwar.

"

15. Shri Shobha Ram, M.L.A., and Ex Chairman, Urban Improvement Trust, Alwar.

"

16. Shri Ramanand Agarwal M.L.A., Alwar.

"

17. Shri Chottu Singh Ex-Chairman Urban Improvement Trust, Alwar.

"

18. Chief Town Planner & Architectural Advisor Rajasthan, Jaipur.

"

Town Planning (Gr. II) Department

The Secretaries,

of all Urban Improvement Trusts,

Rajasthan

Notification No. F. 7(8) TP/76 dated the 5th May, 1976.

Sub : Approval of building plans by UITs, and Municipalities in Trust area.

Sir,

I am directed to state that certain amendments have been made in Urban Improvement Act, 1959 by the Ordinance No. 5 of 1976, which has been published in the Rajasthan Gazette Extraordinary dated 28-2-1976. One of the objects of

promulgation of the above ordinance was that UIT along should be authorised to approve building plans in urban areas. According to the amended provisions of section 47 of the Urban Improvement Act, the UIT, has alone power to exercise the powers of Municipal Law in Trust area. The powers of section 170 of the Rajasthan Municipalities Act, 1959 have already been incorporated in the said ordinance and as such UIT is a alone competent to accord sanction of the building plans in urban areas. It has been brought to the notice of the Government that the old practice of obtaining such permission from Urban Improvement Trust as well as from Municipality is still continuing. It appears that this old practice is being continued on account of Rajasthan Improvement (Coordination between the Municipalities and Urban Improvement Trust with regard to construction of buildings) Rules, 1964. These rules are against the spirit of the amended Urban Improvement Act and as such they cannot prevail upon the act to the extent of inconsistency.

It is therefore clarified that in urban areas, the UIT alone is competent to accord permission for approval of building plans and local Municipal body does not have such jurisdiction. Action is being taken separately to amend and if necessary to repeal the above rules. The fees realisable for approval of buildings plans etc. which hitherto being realised by Municipalities shall now be realised by the Urban Improvement Trusts. If necessary these could be revised by the Trusts themselves.

Secretary to the Government

Copy forwarded for information & necessary action to the following:-

1. The Director of Local Bodies, Rajasthan Jaipur.
2. The Administrator of the Municipal Councils, Municipal Boards of the Rajasthan concerned with UITs.
3. The Chief Town Planner, Rajasthan Jaipur.

Assistant Secretary to Government.

Notification No. F. 1(13) TP111/72, dated 16-6-1976, Published in Rajasthan Gazette, Extra ordinary, Part 6-B, dated 16-6-1976, page 5. - In exercise of the powers conferred by sub-section (1) of section 3 read with item (X) of sub-section (1) of Section 2 of Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

) and in supersession of this Department Notification No. F. 1 (13) TP/II/72, dated 8-3-1973, the State Government hereby declared that Urban area of Bikaner will include the following revenue villages:-

S. No.

Name of Village

1.
Bichhwall
2.
Anopsagar
3.
Udasar
4.
Ridmalsar Purohitan
5.
Sharah Kajani
6.
Shivbari
7.
Joharbeer
8.
Kishmidesar
9.
Bhojanshala
10.
Bhinasar
11.
Sujandesar
- 12.

Shriramsar

13.

Karmisar

14.

Sharah Tellan

15.

Rughnathsar

16.

Nathusar

17.

Sharah Nathania

18.

Chak Garbi

19.

Bikaner City

20.

Gangashahar

Notification No. F. 1(5) TP/72, dated 16-8-1976, Published in Rajasthan Gazette, Extra ordinary, Part IV-B, dated 17-8-1976, page 11. - In exercise of the powers conferred by sub-section (1) of Section 3 read with Item X of sub-section (1) of Section 2 of Rajasthan Urban Improvement Act (Act

No. 35 of 1959

) and in partial modification of this Department Notification No. F. 1 (2) TP/64, dated the 4th April, 1966 the State Government hereby declare that Urban Area of Ajmer will include the following revenue villages:-

S. No.

Name of Village

1.

Chorsiawas (Chorciawas)

2.

Lohagal

3.

Ghugra (Ghugra)

4.

Gowanri

5.

Nareli

6.

Rasulpura (Rusoalpura)

7.

Madarpura

8.

Kanakarda Bhone Ba (Kakerda Bhorabai)

9.

Thoktelyan (Ajmer Thok Teliyan)

10.

Nosar (Norad Ratidang)

11.

Kotra

12.

Hathikhera

13.

Kazipura (Boraj Quazi-pura)

14.
Thokmalyan (Ajmer Thok Maliyan)

15.
Kiranipura

16.
Barlia

17.
Palran

18.
Sedaria

19.
Parbatpura

20.
Khanpura

21.
Somalpura (Samalpura)

22.
Dorai

23.
Bargoan (Bargeon)

24.
Makhupura

25.
Khajpura

26.
Hatundi

27.
Tabiji

Notification No. F. 3(116) TP/63, dated 23-3-1977, Published in Rajasthan Gazette, Part VI-B, dated 31-3-1977, page 57.-In exercise of the powers conferred by sub-section (1) of section 3 read Item X of sub-section (1) of Section 2 of Rajasthan Urban Improvement Act, 1959 (

No. 35 of 1959

) and in supersession of this department notification No. F. 3 (116)/TP/63, dated Jaipur, 7th October, 1965 and F. 3(116) NA/Group-2/63, dated Jaipur, 22nd February, 1973 respectively. The State Government hereby declares that Urban area of Kota will include the following revenue villages:-

S. No.

Name of Village

1.
Nadna Urf Bargaon

2.
Ramnagar

3.
Nanta

4.
Kunari

5.
Sakatpur

6.
Bhadana

7.
Ganeshpura

8.
Dadwara
9.
Kherli Purohitan
10.
Khand Gaori
11.
Borkhera
12.
Manpura
13.
Deoli Arab
14.
Bhorkhandi
15.
Nayanohra
16.
Tekhra
17.
Hanumat Khera
18.
Ramchandrapura
19.
Rajnagar
20.
Rajpur
21.
Dostpura
22.
Ladpura
23.
Rampura
24.
Kishorepura
25.
Kotri
26.
Gumanpura
27.
Balakund
28.
Shopura
29.
Keshorpura
30.
Ganeshpura
31.
Rangabari
32.
Aanandpura (Alias) Footalab
- 33.

Sogaria
34.
Rangtalab
35.
Arjunpura
36.
Chhatrapura
37.
Kansuwa
38.
Anandpura
39.
Lakhawa
40.
Hathikhera
41.
Dliakar-Kheri
42.
Ummedganj
43.
Khera Jagpura
44.
Sukhpura
45.
Daulatganj
46.
Rojhari
47.
Balita
48.
Nayakhera
49.
Girdharpura
50.
Kanwarpura

[Notification No. F. 1(12) TP/72. dated 1-9-1977, Published in Rajasthan Gazette, Part IV-C (II), dated 6-10-1977, page 242.]

S.O. 364. - In exercise of the powers conferred by sub-section (1) of section 3 read with clause (x) of sub-section (1) of section 2 of Rajasthan Urban Improvement Act, 1959 (Number 35 of 1959) and in supersession of the Town Planning Department Notification of even number dated 12-5-1976, the State Government hereby declare that Urban Area of Jodhpur Town will include the following revenue villages:-

S. No.	Name of Village
1.	Anganwa
2.	Chainpura
3.	Basni Maliyan
4.	Bhadwasia

5.
Punjla
6.
Basni Tamboliyan
7.
Digari Kalan
8.
Digari Khurd
9.
Digari Tiji
10.
Basni Bedan
11.
Kharda Randhir
12.
Alakh Dhara
13.
Bhicharli
14.
Binayakia
15.
Basni Chohanana
16.
Jhalamand
17.
Dhand
18.
Kuri Bhagatasni
19.
Sangaria
20.
Pal
21.
Chokhan
22.
Chopasni Nathdwara
23.
Suthla
24.
Gewan
25.
Golasni
26.
Bagan
27.
Mandore
28.
Desuriya Bishnoian
29.
Surpura
- 30.

Desuriya Kharot

31.

Daijar

32.

Barli

33.

Jodhpur City

Urban Development & Housing Department (Grade III) Government of Rajasthan, Jaipur.

Notification No. F. 1(2) TP 174, dated 19-10-1977.-In exercise of the powers conferred by sub-section (1) of Section 3 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act No. 35 of 1959

) read with clause (x) of sub-section (1) of section 2 of that Act the State Government hereby orders that a Civic Survey shall be carried out and Master plan shall be prepared by the Chief Town Planner & Architectural Adviser, Rajasthan, Jaipur for the Urban Area of PALI which will include the following revenue villages:-

S. No.

Name of Village

1.

Akeli

2.

Manpur

3.

Mandlikund

4.

Pali Town

5. [

[Added items 5 & 6 by Notification No. F. 1(2) UDH/74, dated 18-8-1981.]

Poonayata

6.

Mandiyaj]

Further, in exercise of the powers conferred under sub-section (2) of Section 3 of the Rajasthan Urban Improvement Act, 1959, the State Government hereby constitute an Advisory Council consisting of the following for advising the Chief town Planner & Architectural Adviser, Rajasthan, Jaipur on the preparation of the Master Plan for PALI.

Advisory Council For Preparation of Master Plan For Pall

1. Minister for Urban Development & Housing Department.

Chairman

2. Commissioner & Secretary to the Government. Finance Department

Member

3. Commissioner & Secretary to the Government Health Department

?

4. Commissioner & Secretary to the Government Revenue Department

?

5. Secretary to the Government Urban Dev. & Housing Department

?

6. Secretary to the Government (Industries Department)

?

7. Special Secretary to the (Planning Department)

?

8. Chairman, Rajasthan State Electricity Board

?

9. Collector, Pali

?

10. Chief Engineer, PWD (B & R), Jaipur

?

11. Chief Engineer, PHED, Jaipur

?

12. [Divisional Superintendent, Northern Railway, Jodhpur]

[Substituted for the expression-'Divisional Superintendent, Western Railway, Jaipur' by Rajasthan Gazette Notification No. 1(2) TP/74, dated 20-11-1978.]

?

13. [Deleted]

[The words-'Chairman, UIT Pali' deleted by Rajasthan Gazette, Notification No. 1(2) TP/74, dated 20-11-1978.]

?

14. Chairman[or Administer, Municipal Council, Pali]

[Substituted by Rajasthan Gazette, Notification No. 1(2) TP/74, dated 20-11-1978.]

?

15. Pramukh, Zila Parishad, Pali

?

16. Members, Rajasthan Legislative Assembly Pali Constituency

?

17. Chief Town Planner, Rajasthan, Jaipur Secretary

Secretary

18. [Shri Sampatmal Jain, Advocate

[Inserted by Rajasthan Gazette, Notification No. 1(2) TP/74, dated 20-11-1978.]

?

19. Shri Shrijilal Mathur, Advocate]

?

Order No. F. 10(6) UDH/81, dated 3-7-1981, Published in Rajasthan Gazette Extra ordinary, Part VI-B, dated 3-7-1981, page 5.-In exercise of the powers conferred under sub-Section (1) of Section 3 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

) the State Government hereby direct that Civic Survey shall be carried out and a Master plan shall be prepared by the Chief Town Planner & Architectural Adviser, Rajasthan, Jaipur for the urban area of Bhilwara which shall include the following revenue village:-

S. No.

Name of Village

1.

Bhilwara

2.

Pali

3.

Sanganer

4.

Kewada

5.

Suwana

6.

Haled

7.

Harnai Kalan

8.

Odo Ka Khera

9.

Harani Khurad

10.

Sabalpura

11.

Madhopur

12.

Gatheela Khera

13.

Mandpiya

14.

Atoona

15.

Borda

16.

Pur

17.

Bilya

18.

Malan

19.

Kishanavota Ki Kheri

20.

Mokhampura

21.

Pansal

22.

Jeepiya

23.

Malola

24.

Jodhras

25.

Dhoolkhera

[Notification No. F. 10(12) UDH/III/81, dated 19-9-1981, Published in Rajasthan Gazette. Extra ordinary, Part IV-C(I), dated 21-9-1981, page 32.]

S.O. 129. - In exercise of the powers conferred by sub-section (I) of Section 3 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

), the State Government hereby appoints the Chief town Planner & Architectural Adviser, Rajasthan, Jaipur to carry out a Civic Survey and to prepare a master plan for urban areas of Sumerpur-Sheoganj as specified below:-

S. No.

Name of Village

(District Pali-Tehsil Bali)

1.

Purara

2.

Sumerpur

3.

Jakhora

4.

Koliwara

5.

Galthani

6.

Ramnagar Urf Guda Jeevandas

7.

Angor

(District Sirohi)

8.

Badgaon

9.

Kesarpura

10.

Sheoganj

11.

Erinpura

12.

Akhapura Khuni

13.

Chandana

14.

Kalapura

15.

Palri

Urban Development & Housing (Gr-III) Department Orders

[Notification No. F. 1(1) UDH/79, dated 24-10-1981, Published in Rajasthan Gazette, Part IV-C, dated 5-11-1981, page 357.]

S.O. 441. - In exercise of the powers conferred by sub-section (1) of Section 3 of Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

), the State Government hereby appoints the Chief Town Planner & Architectural Adviser, Rajasthan, Jaipur to carry out a Civic Survey and to prepare a Master Plan for Urban areas of Mt. Abu as specified below:-

S. No.

Name of Village

1.

Sanigaon

2.

Machgaon

3.

Gaogaon

4.

Delwara

5.

Oriya

6.

Jawai

7.

Achalgarh

8.

Salgaon

9.

Torna

10.

Dudhai

11.

Hetamji

12.

Arya

[Notification No. F. 10(15) UDH/81, dated 24-10-1981, Published in Rajasthan Gazette, Part IV-C, dated 5-11-1981, page 357.]

S.O. 442. - In exercise of the powers conferred by sub-section (1) of section 3 of Rajasthan Urban Improvement Act, 1959 (Rajasthan Act 35 of 1959

) the State Government hereby appoints the Chief Town Planner, Rajasthan, Jaipur to carry out a Civic Survey and to prepare a Master Plan for Urban areas of Kishangarh Town as specified below:-

S. No.

Name of Village

1.

Akhri (Ajmer Tehsil)

2.

Jatli

3.

Pharasiya Kishangarh Tehsil

4.

Dhani Rathoran Tehsil

5.

Kishangarh Tehsil

6.

Sanwatsar

7.

Nandawaritya

8.

Tolawal

9.

Nayagaon

Sections 8 and 9

[Notification No. F. 11 (3) UDHI78, dated 12-5-1981, Published in Rajasthan Gazette, Extra ordinary, Part IV-C(II), dated 12-5-1981, page 75.]

S.O. 36. - In exercise of the powers conferred by Sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

), the State Government hereby orders:-

1. That for the purpose of carrying out improvements of the Urban Area included in the Municipal limits of Sri Ganganagar, a board of Trustees called the Urban Improvement Trust, Sri Ganganagar, shall be established.

2. The said Trust shall consist of:-

(i) Collector Sri Ganganagar

Chairman

(ii) Superintendent Engineer Public Works Department (B & R), Sri Ganganagar

Trustee

(iii) Superintending Engineer Public Health Engineering Department, Sri Ganganagar

"

(iv) Superintendent Engineer Rajasthan State Electricity
Board, Sri Ganganagar
"

(v) Dy. Town Planner, Bikaner
"

3. The Term of office of the above trustees shall commence from the date of this notification in the official Gazette.
[Notification No. F. 11(3) UDH/78, dated 12-5-1981, Published in Rajasthan Gazette, Extra ordinary, Part IV-C(II), dated 12-5-1981, page 76.]

S.O. 37. - In exercise of the powers conferred by Sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959
(Act
No. 35 of 1959

), the State Government hereby orders:-

1. That for the purpose of carrying out improvements of the Urban Area included in the Municipal limits of Bhilwara, a Board of Trustees called the Improvement Trust, Bhilwara shall be established.

2. The said Trust shall consist of:-

(i) Collector, Bhilwara
Chairman

(ii) Superintending Engineer Public Works Department (B &
R), Bhilwara

Trustee

(iii) Superintending Engineer Public Health Engineering
Department, Ajmer
"

(iv) Superintending Engineer Rajasthan State Electricity
Board, Bhilwara
"

(v) Dy. Town Planner, Udaipur
"

3. The term of the office of the above trustees shall commence from the date of this notification in the official Gazette.
[Notification. No. F. 11(3) UDH/78, dated 12-5-1981. Published in Rajasthan Gazette. Extra ordinary, Part IV-C(II), dated 12-5-1981, page 76.]

S.O. 38. - In exercise of the powers conferred by Sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959
(Act
No. 35 of 1959

), the State Government hereby orders:-

1. That for the purpose of carrying out improvements of the Urban Area included in the Municipal limits of Bharatpur, a Board of Trustees called the Improvement Trust, Bharatpur shall be established.

2. The said Trust shall consist of:-

(i) Collector, Bharatpur
Chairman

(ii) Superintending Engineer Public Works Department (B &
R), Bharatpur

Trustee

(iii) Superintending Engineer Rajasthan State Electricity
Board, Bharatpur
"

(iv) Superintending Engineer Public Health Engineering
Department, Bharatpur
"

(v) Dy.- Town Planner, Alwar
"

3. The term of the office of the above trustee, shall commence from the date of publication of this Notification in the official Gazette.

Collectors as Chairman of U.I.T.:—The State Government appointed:—

1. The Collector, Jodhpur is Chairman of U.I.T., Jodhpur.

(Notification No. F. 2(1) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 page 77.)

2. The Collector, Udaipur as Chairman of U.I.T., Udaipur.

(Notification No. F. 2(2) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 page 77.)

3. The Collector, Sawai Madhopur as Chairman of U.I.T., Sawai Madhopur.

(Notification No. 2(3) TP/72 dated 7-1-1972, Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

4. The Collector, Alwar as Chairman of U.I.T., Alwar.

(Notification No. F. 2(4) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

5. The Collector, Ajmer as Chairman of U.I.T., Ajmer.

(Notification No. F. 2(5) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

6. The Collector, Bikaner as Chairman of U.I.T., Bikaner.

(Notification No. F. 2(b) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

7. The Collector, Bharatpur as Chairman of U.I.T., Bharatpur. (Notification No. F. 2(7) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

8. The Collector, Bhilwara as Chairman of U.I.T., Bhilwara.

(Notification No. F. 2(8) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

9. The Collector, Kotah as Chairman of U.I.T., Kotah. (Notification No. F. 2(9) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 77.)

10. The Collector, Sawai Madhopur as Chairman of U.I.T., Hindaun.

(Notification No. F. 2(10) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 7-1-1972 Page 78.)

11. The Collector, Chittorgarh as Chairman of U.I.T., Chittorgarh.

(Notification No. F. 2(11) TP/72 dated 7-1-1972 Published in Rajasthan Gazette Extra ordinary. Part I-A dated 7-1-1972 Page 78.)

12. The Collector, Jaipur as Chairman of U.I.T., Jaipur.

(Notification No. F. 2(12) TP/72 dated 10-1-72 Published in Rajasthan Gazette Extra ordinary, Part I-A dated 10-1-72 Page 79.)

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Jaipur-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust. Jaipur:—

(1)

Chief Town Planner, Rajasthan, Jaipur.

(2)

Shri K.C. Mittal, Superintending Engineer (Roads).

(3)

Superintending Engineer, Rajasthan State Electricity Board.

(4)

Superintending Engineer, Public Health Engineering Department.

Note.—The date of Notification of even number mentioned as 7-1-1972 should be 10-1-1972.

[Notification No. F. 2(12) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary Part I-B, dated 20-1-1972, page 287.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Chittorgarh Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Chittorgarh:-

(1)

Deputy Town Planner, Udaipur.

(2)

Executive Engineer, P.W.D. (B. & R.), Chittorgarh.

(3)

Executive Engineer, Rajasthan State Electricity Board, Chittorgarh.

(4)

Executive Engineer (Civil), Public Health Engineering Department, Chittorgarh.

[Notification No. F. 2(11) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, page 287.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Hindaun Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Hindaun:-

(1)

Deputy Town Planner, Jaipur Region, Jaipur.

(2)

Executive Engineer, P.W.D. (B. & R.) Division, Sawai Madhopur.

(3)

Executive Engineer (Civil), Public Health Engineering Department, Sawai Madhopur.

(4)

Executive Engineer, Rajasthan State Electricity Board, Sawai Madhopur.

(5)

Sub Divisional Magistrate, Hindaun.

[Notification No. F. 2(10) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 287.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Kota-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Kota:-

(1)

Deputy Town Planner, Kota.

(2)

Superintending Engineer, P.W.D. (B. & R.), Kota circle, Kota.

(3)

Executive Engineer (Civil), Public Health Engineering Department, Kota.

(4)

Superintending Engineer, Rajasthan State Electricity Board, Kota.

[Notification No. F. 2(9) T.P./72. dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary Part I-B, dated 20-1-1972, Page 288.]

The Rajasthan Urban Improvement Act, 1959 Section 9(2)-Other Trustees of the Improvement Trust, Bhilwara-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Bhilwara:-

(1)

Deputy Town Planner, Udaipur .

(2)

Executive Engineer, P.W.D. (B. &R.), Bhilwara.

(3)

Executive Engineer, Public Health Engineering Department, Ajmer.

(4)

Executive Engineer, Rajasthan State Electricity Board, Bhilwara.

[Notification No. F. 2(8) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 288.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Bharatpur-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Bharatpur:-

(1)

Deputy Town Planner, Jaipur Region, Alwar.

(2)

Executive Engineer, (B. & R.) P.W.D., Bharatpur.

(3)

Executive Engineer (Civil), Public Health Engineering Department, Bharatpur.

(4)

Executive Engineer, Rajasthan State Electricity Board, Bharatpur.

[Notification No. F. 2(7) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 288.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Bikaner-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Bikaner:-

(1)

Deputy Town Planner, Bikaner.

(2)

Superintending Engineer, P.W.D. (B. & R.) Bikaner Circle, Bikaner.

(3)

Superintending Engineer, Rajasthan State Electricity Board, Bikaner.

(4)

Superintending Engineer (Mechanical), Public Health Engineering Department, Bikaner.

[Notification No. F. 2(6) T.P./72. dated 20-1-1972. Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, page 288.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Ajmer-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act

35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Ajmer:-

(1)

Deputy Town Planner, Ajmer.

(2)

Superintending Engineer, P.W.D. (B. & R.) Circle, Ajmer.

(3)

Superintending Engineer, (Civil), Public Health Engineering Department, Ajmer.

(4)

Executive Engineer, Rajasthan State Electricity Board, Ajmer.

[Notification No. F. 2(5) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 289.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Alwar-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act

35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Alwar:-

(1)

Deputy Town Planner, Alwar.

(2)

Executive Engineer, P.W.D. (B. & R.) Alwar.

(3)

Executive Engineer, Rajasthan State Electricity Board, Alwar.

(4)

Executive Engineer, (Civil) Public Health Engineering Department, Alwar.

[Notification No. F. 2(4) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 289.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Gangapur-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act

35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Gan-gapur:-

(1)

Deputy Town Planner, Jaipur Region, Jaipur.

(2)

Executive Engineer, P.W.D. (B. & R.) Division, Sawai Madhopur.

(3)

Executive Engineer, Rajasthan State Electricity Board, Sawai Madhopur.

(4)

Executive Engineer, Public Health Engineering Department, Sawai Madhopur.

[Notification No. F 2(3) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 289.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Udaipur-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act

35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Udaipur:-

(1)

Deputy Town Planner, Udaipur.

(2)

Superintending Engineer, P.W.D. (B. & R.), Udaipur Circle I, Udaipur.

(3)

Superintending Engineer, Rajasthan State Electricity Board, Udaipur.

(4)

Superintending Engineer, (Civil) Public Health Engineering Department, Udaipur.

[Notification No. F. 2(2) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 289.]

The Rajasthan Urban Improvement Act, 1959-Section 9(2)-Other Trustees of the Improvement Trust, Jodhpur-Appointed.

In Constitution of this Department Notification of even number dated the 7th January, 1972 and in exercise of the powers conferred by sub-section (2) of Section 9 of the Rajasthan Urban Improvement Act, 1959 (Act 35 of 1959

), the State Government hereby appoints the following as other Trustees of the Improvement Trust, Jodhpur:-

(1)

Deputy Town Planner, Jodhpur.

(2)

Superintending Engineer, P.W.D. (B. & R.), Jodhpur.

(3)

Superintending Engineer, Public Health Engineering Department, Jodhpur.

(4)

Superintending Engineer, Rajasthan State Electricity Board, Jodhpur.

[Notification No. F. 2(1) T.P./72, dated 20-1-1972, Published in Rajasthan Gazette, Extra ordinary, Part I-B, dated 20-1-1972, Page 289.]

Order No. F. 8(22) TP/74, S.O. 153, dated, 22-10-1974, Published in Rajasthan Gazette Extra-ordinance Part IV-C (II) dated 26-10-1974 Page 312-313.-In exercise of the powers conferred by sections 8, 9 & 18 of the Rajasthan Urban Improvement Act (35 of 1959

) the State Government hereby orders:-

(i)

That for the purpose of carrying out improvements of the Urban area included in the Municipal Limits of Sikar City, a board of trustees called the Improvement Trust, Sikar shall be established.

(ii)

That the said trust shall consist of:-

(a)

Collector, Sikar
Chairman.

(b)

Executive Engineer, PWD (B&R), Sikar
Member.

(c)

Executive-Engineer, PHED, Sikar
Member.

(d)

Executive Engineer, RSEB, Sikar
Member.

(e)

Dy. Town Planner (Jaipur Region), Jaipur
Member.

(iii)

That the term of the said trustees shall commence from 1-11-74.

Order No. F. 18(149) Rev./Col/73, S.O. 78, dated 15-7-1974, Published in Rajasthan Gazette Extra ordinary, Part IV-C, dated 17-7-1974 Page 157.-In exercise of the powers conferred by sections 92 and 102-A of the Rajasthan Land Revenue Act, 1956 (Rajasthan Act

15 of 1956

), read with section 10 of the Rajasthan Colonization Act, 1954 (Rajasthan Act

27 of 1954

), the State Government is hereby pleased to order that whenever the conversion of agricultural land into abadi land in project areas is an imperative necessity due to expansion of population and need for more housing accommodation for the people, and suitable unoccupied Government agricultural land is available for such conversion, the Collector may, in exercise of the powers conferred on him under section 92 of the Rajasthan Land Revenue Act, 1956 set apart any such land for the development of abadi. On receipt of a request from an Improvement Trust, a Municipal Board of a Village Panchayat for the conversion of any unoccupied Government agricultural land, the Collector shall consider the request, carefully examine the need for expansion of abadi and see whether the conversion of that particular land is an imperative necessity. If the Collector is satisfied about such need and the Improvement Trust, Municipal Board of Village Panchayat as the case may be, is prepared to pay the capitalized value as shown in the Table given below for conversion of such unoccupied Government agricultural land into abadi land, he shall place it at the disposal of the Improvement Trust, Municipal Board of Village Panchayat, as the case may be, for the development of the land. The Collector may, after charging the capitalized value, direct that the land shall not be used for any other purpose and the provisions of the Local Self Government Department Notification No. F. 7(187) L.S.G. 58-1 dated 8-10-1959 (as published in the Rajasthan Gazette Extraordinary, Part IV-C, dated 12-10-59 relating to Government owned nazul lands placed at the disposal of the Municipal authorities, shall be applied:

Provided that the reserve price of the land fixed for the respective Project and for the soil class of land shall be charged in addition to above.

2. The Improvement Trust, Municipal Board or Village Panchayat, as the case may be, shall use the land for the development of abadi,

3. In respect of the lands other than these belonging to the State Government, the sanction of the State Government will be necessary for the conversion of agricultural land for non- agricultural purpose as laid down in section 90 A of the Rajasthan Land Revenue Act, 1956 as the powers to convert private land into abadi is to exercised sparingly in cases of imperative necessity only.

Table

Calculation of Capitalized Value

S. No.

Names of Towns & Cities

Ratio

(1)

Towns & Cities with population of 10 thousand

and above according to latest available Census

Forty times of the sanctioned rent rates to latest available census

(2)

Other Towns & Villages rate

Twenty times of the sanctioned rent

Notification No. F. 4(32) LSG/59, 3-6-1960. Published in Rajasthan Rajpatra, Part IV (C), dated 4-6-1960, page 47.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby directs that-

(i)

for the purpose of carrying out improvement of the Urban area specified in the schedule hereto annexed, there shall be established a board of trustees to be called the Improvement Trust of Alwar where its principal office shall be situated;

(ii)

the said trust shall consist of-

(a) Collector, Alwar.

Chairman

(b) Executive Engineer, B & R, Alwar

Member

(c) Shri Jai Krishan Sharma, Alwar

Member

(d) Shri Ramjilal Agrawal

Member

(e) Shri Umraolal Gupta, Advocate

Member

(f) Shri Jai Narain Gupta

Member

(Elected by the Municipal Council, Alwar).

(iii)

the term of the office of; and the said trustees shall commence on the publication of this Notification in the Rajasthan Gazette.

The Schedule

Urban area of Alwar

Notification. No. F. 2(4) LSG/60, 14-10-1960. Published in Rajasthan Rajpatra. Part VI (a), dated 17-10-1960, page 321.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby orders:-

(1)

that for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Udaipur City, a board of trustees called the Improvement Trust, Udaipur shall be established.

(2)

that the said trust shall consist of-

(i) Collector, Udaipur

Chairman

Member elected by the Municipal Council of Udaipur.

(ii) Shri Bhai Bhagwan

Member

(iii) Shri Prakash Mai Chatur

Member

(iv) Executive Engineer, P.W.D., B & R.

Member

Members appointed by the State Government.

(v) Shri Kajori Lai Bansal

Member

(vi) Shri Pratap Singh Muradia

Member

(vii) Shri Mohammed Hussain

Member

(3)

that the term of office of the said Trustees shall commence from 1st November, 1960.

Notification No. F. 2(2) LSG/60. 14-10-1960, Published in Rajasthan Rajpatra, Part VI (a), dated 17-10-1960, page 321.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby orders:-

(1)

that for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Jodhpur City, a board of trustees called the Improvement Trust, Jodhpur shall be established.

(2)

that the said trust shall consist of-

(i) Collector, Jodhpur

Chairman

Member elected by the Municipal

Council of Udaipur.

(ii) President, Municipal Council, Jodhpur

Member

(iii) Shri Prakash Mai Chatur

Member

(iv) Shri Jai Lai Sharma

Member

Members appointed by the State

Government.

(v) Executive Engineer, P.W.D., B. & R.

Member

(vi) Shri Narendra Kumar Sanghi

Member

(vii) Shri Jagan Nath Purohit Retired I.A.S.

Member

(viii) Shri Makhtoor Mai Singhvi

Member

(3)

that the term of office of the said Trustees shall commence from 1st November, 1960.

Notification No. F. 2(3) LSG/60, 14-10-1960, Published in Rajasthan Rajpatra, Part VI (a), dated 17-10-1960, page 321.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby orders:-

(1)

that for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Ajmer City, a board of trustees called the Improvement Trust, Ajmer shall be established.

(2)

that the said trust shall consist of:-

(i) Collector, Ajmer

Chairman

Member elected by the Municipal

Council.

(ii) Shri Kishan Gurnani

Member

(iii) Shri Manak Chand Sogani

Member

(iv) Executive Engineer, P.W.D.

Member

Members appointed by the State

Government.

(v) Dr. Amba Lal

Member

(vi) Dr. Suraj Narain Retired Civil Surgeon, Ajmer

Member

(vii) Shri Dan Mai Mathur, Vice Principal, Mayo College, Ajmer

Member

(3)

that the term of office of the said Trustees shall commence from 1st November, 1960.

Notification No. F. 2(1) LSG/60, 14-10-1960, Published in Rajasthan Rajpatra, Part VI (a), dated 17-10-1960, page 321.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby orders:-

(1)

that for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Bikaner City, a board of trustees called the Improvement Trust, Bikaner shall be established.

(2)

that the said trust shall consist of:-

(i) Collector, Bikaner

Chairman

Member elected by the Municipal

Council of Bikaner.

(ii) Shri Shiva Kishan Achiya

Member

(iii) Shri Uma Kant Chowdhry

Member

(iv) Executive Engineer, P.W.D., B&R Bikaner

Member

Members appointed by the State

Government.

(v) Shri Panna Lai Barupal, M.P.

Member

(vi) Shri Mool Chand Pareek

Member

(vii) Shri Kishan Lai Chandak

Member

(3)

that the term of office of the said Trustees shall commence from 1st November, 1960.

Notification No. F. 4(32) LSG/A/59. 26-12-1960, Published in Rajasthan Raj-patra, Part I (b), dated 27-12-1960, page 77.-In exercise of the powers conferred by sections 8, 9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act No. 35 of 1959

), the State Government hereby orders:-

(1)

that for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Jaipur City, (excluding the areas within the city walls of Jaipur) shall be established;

(2)

that the said trust shall consist of:-

1. Shri Devi Shankar Tiwari

Chairman

Member elected by the Municipal

Council of Jaipur.

2. Administrator, Municipal Council, Jaipur

Member

3. Shri D.K. Kriplani, Municipal Engineer, Jaipur

Member

4. Superintending Engineer (B & R), Jaipur
Member

Members appointed by the State
Government.

5. Shri Sardarmal Sanghi Advocate, Jaipur
Member

6. Shri Ramesh Chandra Swami, Advocate, Jaipur
Member

7. Shri Seeru Mai, Advocate, Jaipur
Member

(3)

The term of office of the above Trustees shall commence from the date of publication of this Notification in the official Gazette.

Corrigendum No. F. 4(32) LSG/A/59, 30-12-1960, Published in Rajasthan Raj-patra part I (b) dated 30-12-1960, page 81.-In this Department Notification No. F. 4(32) LSG/A/59 dated the 26th December 27, 1960 published in the Extraordinary issue of the Rajasthan Gazette, part I (B), dated December 27, 1960-

(1)

the figures '35' shall be inserted between the words 'No.' and 'of in the second line thereof; and

(2)

the words "a Board of Trustees to be called the Improvement Trust of Jaipur" shall be inserted in the fourth line between the words and bracket "within the City walls of Jaipur" and the words 'shall be established;"

Notification No. F. 4(32) LSC/59, dated 6-1-64, Published in Rajasthan Gazette Part IV-C Extra Ordinary, dated 6-1-64.-In exercise of the powers conferred by sections 8,9 and 13 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

No. 35 of 1959

) the State Government hereby orders:-

1. that for the purposes of carrying out improvement of urban areas included in the Municipal limits of Jaipur City (excluding the areas within the city walls of jaipur) a board of Trustee to be called the Improvement Trust, Jaipur shall be established.

2. that the said Trust shall consist of:-

1. Shri Ramkishore Vyas

Chairman

Member nominated by the Government.

2. Collector

Member

3. Shri Sunder Shyam Bhatia

Member

4. Shri Shah Kistoor Mal

Member

Members till elected members of the Council take
over Member.

5. Shri Jagannath Prashad Mathur

Member

6. Administrator, Municipal council Jaipur

Member

7. Commissioner, Municipal Council Jaipur

Member

8. Chief Town Planner

Member

3. The term of the office of the above trustees shall commence with effect from the date of publication of this notification.

Notification No. F.5/1/TP/64, dated 10-3-64, Published in Rajasthan Gazette Part IV (C) Extra-Ordinary, dated

10-3-64.-In exercise of the powers conferred by the provisions to sub-section (1) of section 9 read with section 8 and Section 13 of the Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

), the State Government hereby orders:-

(1)

That for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Gangapur Town, District Sawai Madhopur, a board of trustees called the Improvement Trust, Gangapur shall be established.

(2)

that the said trust shall consist of:-

1. Collector, Sawai-Madhampur

Chairman

2. Chairman, Municipal Board, Gangapur

Member

3. Chief Town Planner

Member

4. Assistant Engineer, P.W.D., B & R.

Member

(3)

That the term of office of the said Trustee shall commence from 15th March, 1964.

Notification No. F. 5/2/TP/64, dated 5-7-1967, Rajasthan Gazette Extra-ordinance Part IV-C, dated 5-7-1967.-In exercise of the powers conferred by the provisions to sub-section (1) of section 9 read with section 8 and Section 13 of the Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

), the State Government hereby directs:-

(1)

That for the purpose of carrying out improvements of the Urban area included in the Municipal limits of Hindaun Town, District Sawai Madhopur, a board of trustee called the Improvement Trust, Hindaun shall be established.

(2)

That the said trust shall consist of:-

1. Collector, Sawai-Madhampur

Chairman

2. Chairman/Administrator, Municipal Board, Hindaun.

Member

3. Chief Town Planner or his nominee.

...

4. Assistant Engineer, PWD (B & R)

...

(3)

That the term of office of the said Trustee shall commence from 1st July, 1967.

Rajasthan Urban Improvement Act, 1959.-Sections 8, 9 (1), 11, 12 and 13-U.I.T. Hindaun Constitution of.

S.O. 76. - In exercise of the powers conferred by the proviso to sub-section (1) of Section 9 read with Sections 8 and 13 of the Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

) and in supersession of this Department Notification of even number dated 5-7-1967 and 6th November, 1967 (Published in the Rajasthan Gazette, Extra-ordinary Part IV-C dated 5-7-1967 and 6-11-1967 respectively). The State Government hereby orders that the Urban Improvement Trust, Hindaun shall consist of the following:-

1. Chairman

2. One Member/or nominee of the Municipal Board-

3. Two other persons.

In exercise of the powers conferred as above the State Government further appoints the following persons as Chairman and other Members of the said Trust for a period of three years with effect from 1-7-1970 or earlier till he is required to

hold office under sections 11 and 12 of the said Act:-

1. Collector, Sawai Madhopur.

Chairman

2. Chairman/Administrator, Municipal Board (Till elected Body takes over).

Member

3. Chief Town Planner or his nominee

Member

4. Executive Engineer, P.W.D. (B & R), Sawai Madhopur.

Member

[Notification No. F. 5/2/TP/64, dated 30-6-1970, Rajasthan Gazette Extra-Ordinary., Part IV-C (II), dated 30-6-1970, page 157.]

Section 24

Notification No. F. 9/36/TP/63, dated 24-7-1970, Published in Rajasthan Gazette, Extra ordinary, Part IV-C (III), dated 25-7-1970, page 217.-In exercise of the powers conferred by section 24 of the Rajasthan Urban Improvement Act, 1959 (Act No. 25 of 1959), the State Government hereby prescribes the Pay Scale of Rs. 375-25-550-30-850 for the post of Secretary, Urban Improvement Trust in Rajasthan with effect from 1-7-1970. It has also been decided by the State Government to give option (form enclosed) to the Officer appointed as Secretary, Urban Improvement Trust to elect the existing pay scale and to draw pay in his own pay scale plus special Pay, if any, or in the Pay Scale of Rs. 375-850 whichever is beneficial to him.

The above order will be applicable with effect from 1-7-1970 or subsequent date of option. The option once exercised shall be final and it should reach the undersigned duly attested by a Gazetted Officer within the period of two months from the date of issue of this Notification.

Form of Option

1. I, Shri.....hereby elect to draw pay in the New Pay Scale of Rs. 375-25-550-30-850 with effect from 1-7-1970.

2. I, Shri.....hereby elect to continue to draw my pay in the existing pay scale of my Substantive Officiating post mentioned below until the date of my next increment raising my pay of Rs. of vacant or cease to draw pay in the existing pay Scale, Existing pay Scale.....

Name of Substantive Officiating post.....

Name

Signature.

Designation.

Name of the U.I.T.

(Strike out whichever is inapplicable).

Section 43

Notification No. F. 4(32) LSG/59, dated 17-7-1961, Published in Rajasthan Gazette Extra ordinary Part IV-C, dated 1-8-1961, page 111.-In exercise of the power conferred by sub-section (1) of section 43 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act 35 of 1959

), hereinafter referred to as the said Act, the State Government hereby places all nazul lands within the Municipalities of Ajmer, Alwar, Bikaner, Jaipur, Jodhpur and Udaipur, except those lying within the city walls of Jaipur, at the disposal of the Improvement Trust (hereinafter referred to as the Trust) established and constituted under the said Act respectively for each of the aforesaid places, on the following terms and conditions, namely:-

(a)

Every Trust shall Improve the lands placed at its disposal in accordance with a scheme or schemes framed and sanctioned under the said Act;

(b)

Such improvement shall not be undertaken or carried out except by or under the control and supervision of the Trust;

(c)

The Trust shall demarcate plots both for allotment at a fixed price and for sale by action and shall formulate proposal for fixing the reserve price for such allotment and sale;

(d)

The Trust may also, in consultation within the district level officers of the departments concerned and the district development officer, set apart lands placed at its disposal, for school buildings, dispensaries, veterinary dispensaries and the like;

(e)

All proposals made by the Trust, together with those for fixing the reserve price at which plots improved and demarcated as aforesaid may be allotted or sold by auction shall be submitted for the sanction of the State Government;

(f)

Such proposals shall be examined by a Committee consisting of-

(i)

the Minister for Local Self-Government Department,

(ii)

the Collector of the District concerned,

(iii)

the Secretary to the Government in the Local Self Government Department,

(iv)

the Chairman of the Trust concerned or any other trustee nominated by the Chairman, and,

(v)

a representative of the Finance Department not below the rank of a Deputy Secretary to Government;

(g)

The Committee shall meet at least once a month or, if there be no proposals for its consideration, at least once a quarter and any three members present at the meeting shall form the quorum necessary for the transaction of its business;

(h)

The Committee may sanction the proposal with or without any modification or may return them to the Trust concerned for reconsideration;

(i)

The reserve price finally approved by the Committee for allotment or sale of lands shall be the sanctioned reserve price;

(j)

A copy of the proceedings of the Committee shall be sent to the Secretary to Government in the Local Self Government Department; and

(k)

The nazul lands shall, after the necessary improvement and demarcation have been made, be disposed of by the Trust subject to any directions of the State Government issued from time to time under clause (b) of sub-section (1) of section 60 of the said Act.

2. Further, in exercise of the power conferred by clause (b) of sub-section (1) of section 60 of the said Act, the State Government issues the following directions subject to which the nazul lands, improved and demarcated as aforesaid, may be disposed of by the Trust concerned, namely:-

(i)

Such nazul lands shall be disposed of by the Trust concerned for and on behalf of the State Government.

(ii)

Save as otherwise directed herein plots of land shall be sold by Public auction and the Collector or any officer appointed by him in this behalf shall be associated at the time of such auction.

(iii)

Such sale by public auction shall be held in the following manner:-

(a)

wide publicity of the proposed auction shall be given by describing the plots proposed to be sold together with their dimensions and area so completely that the description may admit of their identification and by notifying the date and time of the auction and the conditions thereof;

(b)

auction shall be held by an auctioneer appointed by the Trust and under the supervision of an officer of the Trust authorized in this behalf:

Provided that, where an auctioneer has not been so appointed or is not present, the auction shall be held by an officer of the Trust appointed in this behalf by the Trust.

(c)

conditions of bidding shall be read out before the auction starts,

(d)

every bidder shall be required, before he is allowed to bid, to deposit [in case of auction of a cinema or hotel site a sum equivalent to 2% of its reserve price in case of other commercial site a sum equivalent to 5% of its reserve price and in another case]

[Inserted by Notification No. F. 7(3) TP/71 dated 22-4-1974 vide GSR No. 6 Published in Rajasthan Gazette, Extra ordinary Part IV-C dated 5-5-1972 Page 40.]

[Rs. 250/- or a sum equivalent to 2% of the reserve price of the land which ever is high]

[Substituted for the words 'a sum of Rs. 50/- by Notification No. F.3(227) TP/74/Gr. (1) dated 10-10-1974 Published in Rajasthan Gazette Extra ordinary Part IV-C (II) dated 14-10-1974.]

which shall be refunded to him at the close of the auction,

(e)

proceedings shall be drawn up starting the name of every bidder and the amount for which he bid,

(f)

the successful bidder shall be required fourth with to deposit a sum equal to one fourth of the amount of his bid by way of earnest money and the remaining three-fourths of such amount shall be deposited by him within one month of the acceptance of the bid, failing which the earnest money shall be liable to be forfeited,

(g)

the bids shall be subject to the sanction of the Chairman of the Trust in whom is reserved the right to accept or reject any bid without assigning any reason therefor,

(h)

attempt shall be made to ensure that rings are not formed,

(i)

the officer holding or supervising the auction may at any time cancel any bid if he finds it not to be free and competitive.

(iv)

Plots at fixed price may be allotted to the following categories of persons:-

(a)

members of Scheduled Castes and Scheduled Tribes.

(b)

persons who do not pay income tax, and

(c)

persons whose income exceeds Rs. 250/- per mensem but is below Rs. 400 per mensem.

(v)

Fixed price shall-

(a)

in the case of members of Scheduled Castes and Scheduled Tribes and persons not paying income tax, include development charges plus 20% thereof, and

(b)

in the case of persons whose income exceeds Rs. 250 but is less than Rs. 400 per mensem, be double the fixed price or the highest price at which plots situated in the same locality have been sold by auction, whichever is less.

(vi)

[Allotment of plots at fixed price shall, in all cases be on the basis of first come first serve, and to the persons residing in the same town or city.]

[Substituted by Notification No. F. 4(32) LSG759 dated 8-6-1962, Published in Rajasthan Gazette Extra ordinary Part IV-C dated 8-6-1962.]

(a)

[Allotment of plots at fixed prices shall in all cases be on the basis of Lottery system and in the manner as prescribed in the Annexure attached to the notification:]

[Substituted by Notification No. F. 7/2/TP/64 dated 21-4-1965. Published in Rajasthan Gazette Part IV-C, Ordinance dated 17-6-1965]

[Provided that 15% of the plots shall be reserved for Governments Servants and 15% for the Defence personnel and allotment shall be made by lottery system:]

[Added by Notification No. F. 7(2) TP (64) dated 10-12-1971. Published in Rajasthan Gazette Part IV-C, dated 23-12-1971, page 416 (116-117.)]

[Provided further that 15% of the plots reserved for each of the above mentioned categories shall be reserved for members of Scheduled Caste/Scheduled Tribes for allotment by lottery system.]

(aa)

[xxx]

[Deleted by Notification No. F. 7(2) TP (64), dated 10-12-1971. Published in Rajasthan Gazette. Part IV-C, dated 23-12-1971, page 416 (116-117).]

(vii)

Small strips of land adjoining existing buildings and comprised within the nazul land placed at the disposal of the Trust under sub-section (1) of section 43 of the said Act shall be disposed by the Trust at the sanctioned reserve price.

[Explanation 1. - A strip of land shall mean a piece of land adjoining an existing plot which cannot be put to independent use taking into consideration its smallness and situation. No strip of land shall be sold-

(i)

if it endangers public safety, or is against traffic regulations;

(ii)

if it is to be used for a purpose other than the building to which such strip is adjacent.

Explanation 2. - The sale of strip shall further be subject to the following additional:-

(i)

if strips of land about traffic is land, it shall not be sold without prior approval of the District Magistrate.

(ii)

construction over the strip shall not in any way mar beauty or general out look of the area;]

(viii)

No plot shall be allotted or sold or sold for a price which is less than the sanctioned reserve price;

Provided that, lands for schools and other public and charitable institutions may be disposed of by the Trust-

(a)

on payment of 50% of the sanctioned reserve price, or

(b)

with the prior permission of the State Government, free of any charge,

(ix)

Allotment of the plots at fixed price shall be subject to the conditions:-

(a)

that the allottee shall be bound to complete the construction of a house thereon within a period of two years from the date of allotment;

(b)

that he shall not transfer the land so allotted until such construction is completed; and

(c)

where no such construction is made within the period of two years as aforesaid, the allotment shall be liable to cancellation subject to the refund of three-fourth of the fixed price paid for it and the removal by the allottee of the building materials, if any, lying or standing on the plot allotted.

(x)

All moneys received on account of the sale or allotment of the plots shall be credited to the Improvement Fund constituted under sub-section (1) of section 61 of the said Act.

(xi)

For every sale or allotment of land by the Trust, a document in respect thereof shall be prepared in the form prescribed by the State Government and such document shall be signed for and on behalf of the Governor of the State by the Chairman of the Trust concerned and shall be duly stamped and registered at the expense of the purchaser or allottee.

[Annexure]

[Added by Notification No. F. 7(2) TP/64, dated 21-4-1965, Published in Rajasthan Gazette Part IV-C. dated 17-6-1965 page 240(26).]

1. The lots will be drawn by the Committee appointed by me Trust.
2. The lots will be drawn on the date, time and place as may be fixed by the Trust and such lots shall be drawn by one of the persons selected at random amongst the spectators.
3. The date, time and place fixed for the drawn of lots will be given vide publicity through publications of notices in 2 leading local newspapers and band bills and Local Publicity by beat of drums in all important places of the town. Applicants will be allowed to be present at the time of draw if they so desire.
4. Lots will be drawn separately for different sizes of plots in each scheme, and for different category of applicants.
5. List of all eligible applicants will be prepared in the following form lot-wise after scrutinizing that each applicant is eligible for allotment of a plot under the Scheme.

List No.....

Name of the Scheme

Size of the plot.....

Category of Applicant

S. No.

Name of the Applicant with Address

Number of the Application form as printed on it

Identification number of the applicant

Remarks

1

2

3

4

5

Signature of the Secretary

Signature of the Executive Engineer

6. For the purpose of drawing lots, two boxes of suitable sizes Box No. 1 and Box No. 2 will be taken. Box No. 1 will contain paper slips (rounded up in the shape of balls) bearing the number of the eligible applicant and Box No. 2 will contain paper slips (rounded up in the shape of balls) bearing the numbers of the plots, to be allotted.

Specimen of slip for Box No. 1

Specimen of slip for Box No. 2

1

2

1. Name of the applicant

1. Name of the Scheme

2. Number of applications as printed thereon

2. Size of the plot

3. List No.

3. Number of the plot

4. Serial No. of the Applicant on the list

7. After the Trust/Committee has satisfied itself that slips have been duly prepared for all eligible applicants and the available plots for a particular draw, all slips would be converted into balls and will be put into the respective boxes. Thereafter, the lots will be drawn as per para 2 above. Two slips (one from each of the two boxes) will be drawn simultaneously. Separate numbered boxes would be used for the eligible applicants belonging to each category and the boxes would be labeled accordingly.

8. In a draw of lots in which the number of eligible applicants is larger than the number of plots, a statement in Form 'A' given below will be used for recording the result of the draw. To save time, columns 1 and 2 of the statement will be completed before the draw takes place. Columns 2 and 5 will be completed in respect of each plot as soon as it is drawn in the lots.

Form 'A'

Name of the Scheme.....

Size of the plot.....

Category of the applicants.....

Total number of plots available

Number of eligible applicants.

S. No.

No. of Plot

Name of the successful drawee in whose favour
plot mentioned in Column No. 2 has been drawn

Printed No. of the application of the drawee
concerned

Identification number of the application of the
drawee concerned

Signature of the Chairman

1

2

3

4

5

6

9. The successful drawee in respect of each plot will also be announced simultaneously before the gathering. It shall, however be made clear that the plots will be allotted to the successful applicants after approval by the Trust.

In respect of a draw of lots in which the number of applicants is less than the number of plot available a statement in Form 'B' given below will be used for recording the result of draw of lots:-

Form 'B'

Name of the Scheme.....

Size of the plots.....

Category of the applicant.....

Total number of plots available.....

Number of eligible applicants.

S. No.

No. of eligible applicant

Printed No. on the application of the applicant

Identification No. of the application of the
applicant

The No. of the drawn in lot

Signature of the Chairman

1

2

3

4

5

6

10. As soon as a particular draw of lots is over, the Chairman of the Trust will sing the result of the draw to authenticate the same, the case will be submitted to the Trust for according approval to the allotment of the plots.

11. After the proposal has been approved by the Trust each successful allottee will be informed of the plot allotted to him, and he will be required to pay the premium etc. under the terms and conditions relating to the Scheme.

Notification No. F. 4(32) LSG/59, dated 6-7-1967. Published in Rajasthan Gazette Part IV-C dated 28-8-1962, page 472.-In exercise of the powers conferred by subsection (1) of section 43 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

), The State Government hereby places all nazul lands within the limits of the Municipal Board, Bharatpur at the disposal of the Improvement Trust, Bharatpur established and constituted under the said Act on the terms and conditions as specified in this Department Notification No. F. 4(32) LSG/59 dated 17th July, 1961 as subsequently amended from time to time.

Section 48

Notification No. F. 8(92) LSG/62 dated 2-11-1962, published in the Rajasthan Gazette, Part IV-C, Extraordinary, dated 2-11-1962.-In exercise of the powers conferred by section 48 of Rajasthan Urban Improvement Act, 1959 (Act

No. 35 of 1959

), the State Government hereby transfers with immediate effect the powers exercisable by the Municipal Councils and the Municipal Boards under Section 203 of the Rajasthan Municipalities Act, 1959 to all the Improvement Trusts to be exercised within the scheme areas.

Section 60

Notification No. F. 7/ 187/LSG/58, dated 9-5-1963 Published in Rajasthan Gazette, Extra ordinary, Part IV-C, dated 16-5-1963 Page 177 to 179.- In exercise of the powers conferred by section 102-A of the Rajasthan Land Revenue Act 1956 (Rajasthan Act No. 10 of 1956) read with section 43 and clause (b) of sub-section (i) of section 60 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

No. 35 of 1959

) and in partial modification of the Local Self-Government Department Notification No. F. 7/187/LSG/58, dated the 8th March, 1961 and No. F. 4/32/LSG/59, dated 17th July 1961 the State Government lays down the following further conditions and restrictions with regard to the nazul lands placed at the disposal of the Municipalities and Improvement Trusts concerned, namely:

1. Outright sales abandoned. - (1) That outright sales of land in towns having a population of over 25,000 persons and towns where medium and large Industries are being established and an investment exceeding Rs. 50 lakhs has to be made, without liability to annual urban assessment shall be wholly abandoned.

(2)

That instead of outright sale of lands, i.e. the sale of free-hold rights in land, there shall be sale only of the lease-hold rights in the land by public auction or by allotment, with a further liability to pay annual urban assessment or rent.

(3)

That such a sale of rights in land shall be for a period of ninety nine years in case of residential plots of lands and lands given on lease for commercial and industrial purposes.

2. Determination of premium. - That the sale of leasehold rights in land may be made both by allotment at a fixed price and by public auction. The premium (Nazrana) shall be determined by public auction, but the amount of the reserved price or the minimum premium shall be worked after adding the following items, namely:-

(i)

Cost of lease-hold rights in undeveloped land;

(ii)

cost of development:

(iii)

20% of the item No. (ii) to cover the administrative charges;

Provided that the reserved price shall not be less than Rs. 5/- per sq. yard where underground sewage is provided and Rs. 3.75 nP. Sq. yard where no such underground sewage is provided.

3. Urban Assessment. - (1) Urban assessment or rent for lands (whole lease hold rights have been sold for residential, commercial or industrial purposes) shall be fixed on the basis of reserved price or the fixed price, as the case may be at 2 ½% in case of residential plots of land and 5% in case of lands given on lease for commercial and industrial purposes.

(2)

The Urban assessment once fixed shall be liable to revision after every 15 years but the increase shall not exceed 25% of the urban assessment at the time of such revision.

(3)

The urban assessment shall be credited to the Consolidated Fund of the State.

(4)

Full urban assessment shall be charged on the plot after the third year before which the construction of a house shall be completed for the first three years, half the urban assessment only shall be charged.

[4. Allotment. - (1) Sale of lease hold rights in land by allotment may be made at concessional fixed price specified in items (i) to (iii) of sub-para (3) to the following categories of persons for construction of residential houses namely:

(i)

Low Income Group Housing-people whose income is up to Rs. 100/- p.m.;

(ii)

Low Income Group-people whose income is between Rs. 101/- to Rs. 250/- p.m.

(iii)

Low Income Group people whose income is between Rs. 251/- to 400/- p.m.]

Provided that 15% of the plots of land available for allotment to the above mentioned categories of persons shall be reserved for allotment to members of the Scheduled Castes and the Scheduled Tribes.

(2)

Sale of lease-hold rights in land by allotment may be made at concessional fixed price specified in item (vi) of sub-para (3) to Rajasthan Government servants and members of the Scheduled Castes and the Scheduled Tribes whose income between Rs. 401/- to Rs. 1000/-per month for construction of residential houses:

Provided that 15% of the plots of land available for allotment to this category of persons shall be reserved for allotment to members of the Scheduled Casts and the Scheduled Tribes.

(3)

The concessional fixed prices referred to above and the areas of plots for allotment to the different categories of persons shall be as follows:-

(i)

in case of Low Income Group-people whose income is up to Rs. 100% p.m. 120, sq yards @ 2 per sq. yard.

(ii)

in case of Low Income Group-people whose income is between Rs. 101/- to Rs. 250/- p.m. 300 sq. yards @ Rs. 3/-per sq. yard.

(iii)

in case of Low Income Group-people whose income is between Rs. 251/- to Rs. 400/- p.m. 400 sq. yards @ Rs. 4/-per sq. yard.

(iv)

in case of Rajasthan Government servants and members of the Scheduled Castes and the Scheduled Tribes whose income is between Rs. 401/- to Rs. 1000/- p.m. 500 sq. yards @ Rs. 6/- per sq. yards.

(4)

[Sale of lease hold rights in land by allotment on above mentioned scales and terms may also be made to Central Government employees, who fulfill the following conditions-

(i)

The application should have been made by the Central Government employee before 9th May, 1963 to the Urban Improvement Trust and on the date of the application he should have been eligible for allotment of a residential plot according to the rules then in force.

(ii)

The income of the applicant should not exceed Rs. 1000/-P.M. on the date of the actual allotment of the plot by the Urban Improvement Trust.]

5. Sharing of savings of schemes. - (1) 50% of the savings of any scheme after meeting the cost of development shall be carried to the Improvement Trust Fund constituted under section 61 of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act

35 of 1959

) or the Municipal Fund referred to in section 93 of the Rajasthan Municipalities Act, 1959 (Act No. 38 of 1959) as the case may be for providing sewage.

(2)

Separate Balance sheets for each scheme shall be maintained.

6. Savings. - That subject to the provisions hereinbefore mentioned:-

(a)

reference to the word "sale" or "allotment" in Local Self Government Department Notification No. F. 7/187/LSG/58 dated the 8th March, 1961 and F. 4/32/LSG/59 dated the 17th July, 1961 referred to above shall, so far as may be, deemed to mean, 'sale of lease-hold rights in land, by auction or by allotment' as the case may be, and the words "sell" and "sold" shall mean accordingly; and

(b)

reference to the words "plots" or land shall be deemed to mean lease hold rights in such plots or land respectively.

[Added by Rajasthan Gazette, Extra ordinary Part IV-C (II) dated 15-1-1971 pages 399-400.]

[Notification No. F. 7/187/LSG/58 dated 14-7-70 Rajasthan Gazette Part 4-C (I) dated 6-8-70 Page 319.]

[Added by Notification No. F. (6) 35/LSG/62. dated 26-6-1962 Published in Rajasthan Gazette Part IV-C, dated 12-7-1962 page 328.]

Related AI tags, queries and research notes

Translation